Merchant Agreement E-Commerce

Confidential

1 **Parties**

The parties to this agreement are:

1.1 **Absa Bank Limited**
Reg No 1986/004794/06
of 7th Floor, Absa Towers West, 15 Troye Street, Johannesburg
("**the bank**" or "**we/us**")

and

1.2 Cameron Falck (T/A Slip-A-Tip)

registration number/Identity number 9603175411083

of 91 A Meyer Street, George, South Africa, 6529 ("**you**")

2 **Introduction**

This agreement regulates the circumstances in which you agree to accept certain cards as a form of payment when cardholders buy goods and services over the internet using SSL protocol.

3 **Interpretation**

3.1 In this agreement, the words on the left have the meanings set out on the right unless the context clearly shows a different meaning:

- **Application form** — means the written application form you complete, sign and deliver to us when you apply to provide goods and services over the internet using SSL protocol.
- **Business day** — means any day which is not a Saturday, Sunday or South African public holiday.
- **Cards** — means MasterCard debit and credit cards and VISA debit and credit cards.
- **Cardholder** — means the person to whom a card has been issued.
- **Card issuer** — means us or any other entity which issues a card.
- **Card Schemes** — means a Payment System Operator in the payment network that processes debit and credit card transactions, of which a bank or any other eligible financial institution can become a member.
- **CAVV** — means "**card authentication verification values**" and means a cryptographic value derived by the cardholder's bank during payment authentication that can give proof of the results of payment authentication during an online purchase.
- **Chargeback** — means a transaction that is reversed because the cardholder has successfully disputed the transaction.
- **Chargeback liability shift** — means a reversal of a chargeback which we first debited to your nominated account, but only if the chargeback is because a cardholder rejected a transaction, i.e. the cardholder denies that he or she participated in the transaction.
- **CPA** — means the Consumer Protection Act 68 of 2008 and its regulations, as amended or replaced from time to time.
- **CSP** — means "**commerce service provider**" and means a third party that supplies merchants with the tools and services they need to buy and sell products and services over the internet.
- **CVC number** — means the "**card validation code**" number and means, for a particular card, the term used by MasterCard to refer to the three- or four-digit number printed on the back of the credit card for security purpose (i.e. as a way for you to confirm that the cardholder actually has the card which he/she is using for a transaction in his/her possession).
- **CVV number** — means the "**card verification value**" number and means, for a particular card, the term used by Visa to refer to the three- or four-digit number printed on the back of that card for security purposes (i.e. as a way for you to confirm that the cardholder actually has the card which he/she is using for a transaction in his/her possession).
- **ECI** — means "**electronic commerce indicator**" and means the indicator, included on the payment transaction message format to show that an electronic transaction started from an internet source, assigned by your POS-terminal.
- **Floor limit** — means the total amount, including any part of the value of sales, which you may allow a cardholder to spend on a card at any one time without authorisation from the card issuer in advance.
- **Fraudulent transaction** — means any transaction which, in terms of the common law or statute, would be fraud (regardless of whether we provide you with an authorisation code number or not). This will include all purchases and transactions which a person other than the authorised cardholder makes with a card and all use of a card which has been unlawfully or illegally issued.

- **Internet** means a global client/service network accessible through an internet services provider by any person or business possessing a personal computer.
- **MSP** means "**merchant server plug-in**" and means a software application that creates and processes payer authentification messages and then returns control to the merchant software for further authorisation processing.
- **Merchant service fee** means a portion of the total value of all card transactions which you process and which you must pay to us.
- **Merchant number** means a number issued by a certificate management system approved by us. This number allows for your authentication.
- **Merchant operating regulations** means the terms and conditions specified by the Card Schemes from time to time. You can access the regulations for MasterCard at mastercard.com and for VISA at visa.com, or any other websites which we will tell you about from time to time.
- **Merchant server** means the server which enables you to send and receive messages.
- **Message** means an electronic communication from the merchant server to the payment gateway or from the payment gateway to the merchant server, in the format we determine from time to time.
- **Payment gateway** means software that we use to forward and receive messages and to adapt messages received from the merchant server to process transactions.
- **PAR** means "**payer authentification request**" and means an authorisation programme that uses personal passwords to ensure the identity of the online card user.
- **PCI DSS** means "**payment card industry data security standard**" and means an international information security standard defined by the Payment Card Industry Security Standards Council.
- **Prime overdraft rate** means the publicly quoted basic rate of interest [per cent, per year, compounded monthly in arrears and calculated on the basis of a 365-day-year (even if it is a leap year)] published by us from time to time as your prime rate, as certified by any of the bank's managers. We do not have to prove the authority, appointment and designation of the bank manager.
- **SET** means the secure electronic transaction protocol prescribed by VISA and MasterCard as an industry standard security specification.
- **Signature date** means the date on which this agreement is signed by the party that signs it last in time.
- **SSL** means secure socket layer.
- **SSL protocol** means a payment industry standard which enables cardholders to conclude transactions over the internet.
- **Transaction** means the transaction in terms of which the cardholder buys goods or services or both over the internet using the SSL protocol.
- **VAT** means value added-tax payable in terms of the Value-Added Tax Act 89 of 1991.
- **We** means Absa Bank Limited (registration number 1986/004794/06), a public company duly registered as a bank under the laws of the Republic of South Africa, with registered address at 7th Floor, Absa Towers West, 15 Troye Street, Johannesburg, 2001.
- **You** means our client identified on the title page of this agreement.
- **3D secure transaction implementation guide** means the 3D secure and SecureCode implementation guides that the Card Schemes make available from time to time.
- **3D secure** means "**3-Domain Secure**" and means the protocol which leverages SSL technology developed by Card Schemes as an important part of their payment authentification programmes to make it possible for issuers to confirm that the person processing a transaction is an authorised cardholder.

3.2 Reference to:
- one gender includes the other gender;
- the singular form of a word includes the plural;
- the plural form of a word includes the singular;
- a law or regulation is a reference to that law or regulation on the date you sign this agreement.

3.3 This agreement is subject to all applicable legislation, as amended from time to time. The operating regulations for Visa and MasterCard merchants for South Africa also apply to this agreement as long as they are compatible with these terms and conditions and with South African laws and regulations. If there is a conflict between these terms and conditions and the merchant operating regulations then these terms and conditions apply.

3.4 For purposes of this agreement, an authorisation or consent which is "**irrevocable**" cannot be recalled or changed.

4 Accepting cards as a form of payment

4.1 You agree to:
- accept each valid card that is presented electronically by the cardholder to you as payment for any goods or services you offer to the cardholder over the internet;
- not set any minimum or maximum limit on transaction values for which you accept card payments. You must treat purchases by card in exactly the same way as cash purchases, including charging the same price.

4.2 You may not refuse to complete a transaction if your only reason is that a cardholder, who has presented his or her card electronically and has complied with all related conditions, does not want to provide extra identification information (such as a telephone number or home address).

4.3 You must identify yourself clearly and unmistakably as the merchant at all cardholder points of interaction, for example on your website, on promotional materials and on your invoices.

4.4 You must tell the cardholder that you are responsible for:
- payment transactions;
- products and services;
- direct client service;
- dispute resolution; and
- all terms and conditions of sale.

4.5 You may not accept cards if the cardholder wants to use the card to buy shares.

5 3D secure transactions

5.1 Specifications for 3D secure transactions

- In order to participate in 3-D secure transactions, you must integrate and test a merchant server plug-in with your existing server.
- You may only use CSPs and MSPs which we have certified and approved.
- The MSP will generate messages to the Card Schemes directory and to various card issuers' access control servers. This is to make sure that each cardholder is an authorised user of the card being used.
- You or your CSPs must configure the authentication page as an inline page, rather than as a pop-up page or screen, according to the card associations' best practices.
- You must implement the MSP using best practices as defined by us and the card associations in the 3-D secure implementation guides.

5.2 Disputed 3D secure transactions

- We have a right of full recourse against you, if you fail to meet the 3D secure standards as developed.
- We will not get involved in any dispute between you and the cardholder. You must provide proof that satisfies us that you have delivered and that the cardholder has received, all the goods and services which caused the dispute failing which, we will have a right of recourse against you.

5.3 Chargeback liability shift

- Subject to the relevant merchant operating regulations, you can benefit from chargeback liability shift because you participate in e-commerce transactions with individuals, as long as the relevant CAVVs and the correct ECI indicators are present for the transaction.
- If the authentication is successful for enrolled cards, you will process the authorisation as usual, passing on authentication data to us or our agent for processing.

5.4 Transactions which do not qualify for chargeback liability shift

- You are liable for any disputed transaction on any card where authentication is unavailable.
- If the authentication is unsuccessful for enrolled cards and you decide to proceed with the transaction, there will be no chargeback liability shift and you will be acting at your own risk.

5.5 Limitation of our liability in relation to chargeback liability shift

- We will not be liable for any transactions if the correct CAVV and ECI indicators are not presented in a transaction.
- We will not be liable for any transactions if the infrastructure or systems or both of any participating party, other than ours, fail or are out of order. In these circumstances you will remain liable for possible chargebacks.

5.6 Participation marks

- If you participate in 3-D secure transactions, you must display the "**Verified by Visa**" and "**MasterCard SecureCode**" logos and other trademarks on your website. As a minimum, you must display these marks on your website payment page. In addition, you can also display these marks on your homepage or your security information page, or both.
- You must never use the "**Verified by Visa**" and "**MasterCard SecureCode**" marks in a way that implies that Visa or MasterCard endorses any of the products or services which you make available to cardholders on your website. You must also not use any of these marks as an acceptance mark in any application.
- You must display the "**Verified by Visa**" and "**MasterCard SecureCode**" learn more mark prominently on your website, both early in the shopping experience and on the payment page. As a minimum, you should place the "**learn more**" mark on the checkout page on which the cardholder enters his/her card number or on another page in the checkout flow that cardholders must view when placing their order.

5.7 Risk management functionality

- You must ensure that you have adequate risk management and fraud reduction tools in place.
- You and your CSP must ensure that you both continue to utilise other risk and fraud management tools and systems, such as transaction screening and velocity checking.
- All transactions must be processed with the CVV/CVC number and must be sent with the authorisation request. You must not store the CVV/CVC number on your systems or write these numbers down.
- You must also not store the full card number on your systems or print this number on any electronic receipt.
- You must comply with the payment card industry data security standard if you store any cardholder data or account information.

5.8 Cost to participate

- You must pay us the following fees for 3-D Secure transactions:
  - R 0 _____ for each transaction; and
  - R 0 _____ as a fixed monthly service fee.
- These fees include VAT.
- We may change the amount of these fees from time to time and we will give you reasonable notice in writing of any changes.
- You must also pay all fees related to integration between your systems and those of the MSP and the CSP to the relevant person.

5.9 Split shipment

- You will have a split shipment (also referred to as a split fulfilment) if a single purchase order results in multiple shipments of bought goods. This happens, for instance, when a cardholder has run out of stock.
- If you have to split the shipment of an order, you may consider each authorisation request as part of the original purchase and may submit these authorisations with the original authentication data.
- If a dispute develops between you and a cardholder, you must be able to show that these authorisation requests were related to the original, client authenticated purchase transaction.
- The total amount of the split transaction must not be more than 15% of the original authentication amount. The 15% variation allows for shipping costs associated with the items.

5.10 **Recurring transactions (if applicable to your agreement)**

- You will have a recurring (ongoing) transaction when you agree with a cardholder that he/she can buy goods or services or both over a period of time. Recurring transactions are multiple transactions processed regularly and with not more than 1 (one) year passing between transactions.
- The first transaction in the series must be authenticated and must follow the authorisation rules associated with an authenticated transaction. Subsequent authorisation requests in the recurring series are processed as recurring transactions.
- These transactions must not contain authentication data, specifically the ECI and the CAVV indicators.
- You will only benefit from chargeback liability shift protection for the initial transaction and not for subsequent recurring transactions. But you will have the right to make representations to us on why you should benefit from chargeback liability shift protection for subsequent recurring transactions once the initial transaction is fully authenticated, as long as you provide the following when you make your representations:
  - a copy of the payer authentication request which contains the relevant recurring payment data, including:
    - the frequency of recurring transactions and
    - recurring expiry obtained from the initial transaction; and
  - documentation of the cardholder agreement as required in the merchant operating regulations.
- The "**Recurring Payment Data**" field, "**Recurring Frequency**" field, and "**Recurring Expiry**" field in the payer authentication request message are required when you and a cardholder have agreed to recurring payments. The "**Recurring Expiry**" field must contain a date that is later than the original authentication date.

5.11 **Instalment Transactions**

- Like recurring transactions, instalment transactions are divided into two or more transactions and are billed to an account in multiple segments over a period of time that you agree to with the cardholder.
- But an instalment transaction is for one purchase or service only rather than an ongoing or recurring purchase.
- The transactions must have a specified end date.
- Similar to processing recurring payments, the initial instalment transaction must be authenticated and must follow authorisation rules associated with an authenticated transaction.
- The remaining transactions are processed as instalment transactions, so must not contain authentication data, specifically the ECI and the CAVV indicators.
- Chargeback liability shift protection does not apply to the subsequent instalment transactions.
- The "**Instalment Payment Data**" field in the payer authentication request message is required when you and the cardholder have agreed to an instalment payment option.

5.12 **Authentication Data Limits**

Data received in an original authentication may be obtained up to 90 (ninety) days before an authorisation date. This allows for instances such as prepurchase transactions where the cardholder may pre-order and purchase goods or services prior to the item's availability in the market.

5.13 **Amount Variation**

The original authentication data will be valid authorisation for amounts that are not more than 15% of the authenticated amount. This variation allows for additional shipping costs associated with the transaction.

6 **Payment and fees**

6.1 We will pay you the value of all goods and services which you supply electronically as soon as you have posted the related transaction electronically. We may keep back payment in the case of excessive chargebacks, bankruptcy, fraud, suspected fraud or invalid transactions.

6.2 You irrevocably give us permission to debit the bank account held in your name which you chose for this purpose, regardless of the bank where you hold this account ("**your nominated account**"), on a monthly basis with the following for cards:

- a merchant service fee;
- a chargeback fee per chargeback; and
- an account administration fee.
- The Merchant fee categories are set out in Schedule A.

7 **Floor Limits**

A zero floor limit applies to all transactions.

8 **Authorisations**

8.1 You must obtain authorisation for all transactions by sending a message.

8.2 You must give the authorisation code number when presenting a transaction for payment.

8.3 We may refuse an authorisation without giving any reasons.

8.4 Authorisation means that the cardholder has enough money in his card account to pay for the authorised transaction at the time and on the date of the authorisation. The fact that we authorise a transaction does not mean that we warrant or guarantee:

- the validity or genuineness of the card;
- the genuineness of the person presenting the card;
- that we will eventually pay the value of the authorised transaction; or
- that we will not chargeback the transaction.

9 **Your obligations in respect of the transaction data**

9.1 You must save all information which relates to each transaction on your database for a period of at least 180 (one hundred and eighty) days from date of that transaction. **You must encrypt each transaction.**

9.2 You must keep proof that you have delivered all goods and services which relate to each transaction for a period of at least 180 (one hundred and eighty) days from date of the transaction.

10 **Presentation for payment**

10.1 You must send a message to the payment gateway to present each transaction to us for payment. In this message you must give details of all authorised transactions and the fact that you have sent the goods which relate to these transactions.

10.2 We will decide at our discretion how often the sending of data must happen.

10.3 You must inform us immediately if there are any errors in the interchange of data because of a faulty communications link. If this happens, our responsibility is only to correct these errors in the interchange of data on the system (this is known in law as a limitation of liability).

10.4 We will credit or debit your nominated account with the total net amount of all transactions which you present to us for payment.

10.5 The fact that we credit your nominated account at any time does not mean that we lose our right to:

- charge the credited amount back to you; or
- cancel payment of transactions by debiting your nominated account with the amount of the invalid transaction in question.

11 **Warranties**

11.1 When you present an electronic transaction to us for payment, you guarantee that:

- the information on the record of that transaction is true, accurate and correct;
- you charged your normal cash price for all goods or services or both which you delivered or supplied in terms of that transaction and that the price contained no extra charges or interest or fees for providing credit;
- that transaction is legal;
- you complied with all the terms and conditions of this agreement; and
- you did in fact supply all the goods and services referred to in the transactions to the cardholder at the agreed location and within the agreed time period.

12 **Indemnity**

You promise to pay any claim brought against us and to make good any loss or liability we may suffer because of any dispute between you and the cardholder about any goods or services which you supplied or delivered to the cardholder. (This is known in law as an indemnity). You must prove to our satisfaction that the cardholder authorised us to debit his or her account.

You will be liable for and indemnify us against any penalty imposed by a Card Scheme and/or Payment Association of South Africa and against any loss, damage or other liability which we incur if you fail to comply with the EMV standards, PCI DSS or any other regulatory requirements.

13 **Invalid transactions**

13.1 A transaction will be invalid if:

- the card has expired and you did not get authorisation;
- the transaction does not comply with the warranties contained in 10 above;
- the amount of the transaction is more than the authorised floor limit and you did not obtain our authorisation in advance;
- you do not present the transaction for payment, or deliver any of the goods or services within the agreed period;
- you are in default of this agreement at the time when you concluded the transaction;
- the cardholder, after paying for shipped goods, realises when he receives the goods that they are broken or otherwise not suitable for the purpose for which the cardholder bought these goods, and the cardholder returns or offers to return these goods.

13.2 We may in our sole discretion choose to treat any invalid transaction as valid but without prejudice to our right in any later transaction to treat any similar transaction as invalid.

13.3 If there is an invalid transaction as set out above, we have the right to charge each such invalid transaction back to you in accordance with 17.1 below.

13.4 If you have:

- a 1% or higher ratio of chargeback transactions to total sales transactions in any month for two following calendar months; or
- a 2,5% or higher ratio of chargeback dollar volume to interchange sales volume in each month for two following calendar months, then you may in terms of the MasterCard and VISA merchant operating regulations be declared an excessive chargeback special merchant. In this instance we will have the right to cancel this agreement immediately.

14 **Refunds**

You may not give refunds via Electronic Funds Transfer.

15 **Provisions relating specifically to software and infrastructure**

15.1 You may only process transactions if you have:

- infrastructure which we have approved; and
- a valid merchant number issued by Absa.

15.2 It is your responsibility to make sure that the following information is displayed on your website:

- a catalogue containing a complete and detailed description of the goods and services which you offer to cardholders;
- your return and refund policy, which must comply with this agreement and the CPA and must set out an address which cardholders can use to return the goods they buy from you according to your return and refund policy;
- your email address, client service contact, telephone number and street address;
- your delivery policy;
- the total price in South African rands which you charge for your goods or services on offer, including any appropriate taxes and delivery charges; and
- a disclosure which informs the cardholder that you, rather than any other supplier of these goods and services, are the merchant of record and are responsible for the transaction.

15.3 You are responsible for payment of connections you need for the proper functioning of your internet infrastructure.

15.4 You agree to implement any hardware or software we require you to use for agreed periods from time to time to manage or reduce levels of fraud.

If you do not use this hardware and software as agreed, we may cancel this agreement with immediate effect.

15.5 You confirm your commitment to the implementation of SET and other security standards. You agree to take the necessary steps we require you to take from time to time to ensure this implementation.

16 **Complying with import and export laws**

You agree to comply with all applicable laws regarding import and export transactions effected over the internet.

17 **Limitation of liability**

17.1 Unless we acted with gross negligence or fraudulent intent, we will not be liable for any damage you may suffer because of (i.e. as a result of or in connection with) the fact that you or any cardholder cannot access your internet infrastructure or use it, or because of any network breakdown, systems failure, equipment malfunction, power failure or similar events which are beyond our control.

17.2 We will not be a party to any dispute between you and any service provider you appoint to put in place your internet infrastructure. Unless we acted with gross negligence or fraudulent intent, we will not be liable for any damage you may suffer because of (i.e. as a result of or in connection with) any failure or malfunction of your internet infrastructure.

18 **Debiting of your account**

18.1 You authorise us to debit your nominated bank account number 1541947922 held at the 470010 branch of Capitec Bank Limited. You agree to inform us immediately in writing if any of these bank account details change.

18.2 We may debit your nominated account with the amount of:

- the value of all reversals of invalid transactions;
- the merchant service fee, the chargeback fee and the administration fee referred to in 6.2;
- any refund due to a cardholder which you do not pay;
- any overpayments due to clerical or electronic errors made by either party;
- the value of transactions which a cardholder disputes with us;
- interest on any amount which you owe to us and have not paid, calculated using our prime overdraft rate. Interest is calculated from the date on which you should have paid us to the date on which you actually pay us the overdue amount;
- the value of transactions which you process using a card that has been cancelled or is otherwise invalid; and
- fees charged by Visa and MasterCard for excessive chargebacks or for other disputes which involve you.

18.3 Your bank will honour all debits that we present for payment and you must pay all the costs associated with any cheques which we draw for this purpose.

18.4 You will pay an administration fee for each payment which is due by you to us and is returned unpaid by your bank.

18.5 The amounts referred to in 18.2 will be subject to exchange rate variations where applicable.

18.6 You must pay VAT on all fees referred to in this agreement where applicable.

18.7 We may immediately cancel this agreement if any debit referred to in this agreement is returned unpaid by your bank.

19 **Fraudulent transactions**

19.1 You must not present records of transactions that you know or should have known were fraudulent or unauthorised by the cardholder. You agree that you will be responsible for the actions of your employees at all times.

19.2 We are entitled to debit any of your bank accounts at any time with the amount of all fraudulent transactions which you deposit or post electronically.

19.3 We reserve the right to cancel this agreement immediately if you commit fraud or we reasonably suspect that you have committed fraud.

20 **Disclosure of information**

20.1 You must tell us in writing and in advance if, for whatever reason:

- the owners of your business (indicated on the application form) change;
- the classification of your business changes; or
- there is any other material change in the nature of your business. If the nature of your business changes to include providing gaming, gambling or pornography or related infrastructure or services, this change will be regarded as a material change for the purposes of this agreement.

20.2 You must disclose to us all information about any previous merchant agreements you concluded with other financial institutions including any restrictive conditions contained in those agreements and the reasons why you ended those agreements. This is so that we can properly evaluate, assess and approve your application. You consent and authorise us to investigate your previous merchant agreements.

20.3 If at the time of signing this e-Commerce agreement you are not a member of an organisation where you qualify for a reduced merchant service fee and you subsequently join an organisation at a later stage, the onus is on you to advise us accordingly. Your failure to advise us will not oblige us to refund any reduced merchant service fee.

20.4 If you do not comply with this clause, we will immediately suspend your access to the SSL technology, report you to the relevant authorities and cancel this agreement.

21 **Secure and confidential data processing**

21.1 You warrant that you will comply with all applicable legislation regarding the processing of data in respect of us and the cardholder. In particular, you may not disclose, sell, purchase, provide or exchange a cardholder's name or account number information in whatever form, including mailing lists, tapes or other media obtained by reason of a card transaction, to third parties, except as required by law.

21.2 You must keep all systems and media that contain account, cardholder or transaction information (physical or electronic, including but not only account number, card imprints, signatures of cardholders) in a safe manner. This is to stop anyone other than you or your authorised personnel and us from getting access to the information. You must destroy, in a manner that will make the data unreadable, all media that in your opinion, you need no longer store.

21.3 You give us permission to make known information about you to any card scheme or other financial institution for use in any fraud prevention schemes they may set up, including the National Merchant Alert Service, the Merchant Performance Reporting Service and the Member Alert to Control High Risk (Merchant) System. This is to help us and these financial institutions to identify merchants who are or may become involved in, among other things, fraud or suspected fraud and in our and their efforts to prevent fraud.

21.4 If you do not comply with this clause, we will immediately suspend your access to the SSL technology, report you to the relevant authorities, and cancel this agreement.

22 **Inspections**

22.1 You will permit us, or our agent, reasonable access to your business premises to:

- do physical inspections to ensure that you are complying with the terms and conditions of this agreement;
- investigate any cardholder claims that you are not complying with the terms of this agreement; and
- investigate instances in which we reasonably suspect that you are involved in fraud.

23 **Monthly statements**

You have to check all the statements we send you. You must let us know in writing within 30 (thirty) days of the date of the bank statement if there is something on a statement that you do not agree with. If you do not let us know within this time, we have the right to treat the bank statement as correct. You will then have to prove that the bank statement is not correct.

24 **Promoting Payment Acceptance**

24.1 You must display the branding so that the public is aware that you are willing to accept the card as an online method of payment for your goods and services.

25 **Default under this agreement by either party**

25.1 We may exercise our rights, which include demanding immediate payment of overdue amounts due to us under this agreement or cancelling this agreement, as may be permissible in law, without prejudice to any of our other rights if any of the following events occur:

- You do not comply with a material provision of this agreement and you do not remedy this breach within 20 (twenty) business days of receiving written notice from us asking you to do so.
- Any representation or warranty made in connection with this agreement or any other documents supplied by you to us in connection with this agreement is materially incorrect or false (where a warranty refers to an express confirmation on your part that something is or will be as you have represented to us or promised us that it is or will be).
  - You:
    - being an individual:
      - publish notice of the voluntary surrender of your estate or die;
      - are placed under administration or commit an act of insolvency as defined in the Insolvency Act 24 of 1936;
      - have any application or other proceedings brought against or in respect of you where a third party seeks to have you sequestrated or placed under curatorship, in any event whether in a manner which is provisional or final, voluntary or compulsory;
    - being a juristic entity:
      - are wound up, liquidated, dissolved, deregistered, in any event in a manner which is provisional or final, voluntary or compulsory, or you pass or it passes a resolution providing for any such event;
      - are treated as being unable to pay your debts;
      - resolve that you voluntarily begin business rescue proceedings or have any business rescue proceedings commenced against you as contemplated in section 132(1) of the Companies Act 71 of 2008.
    - judgment of a competent court against you for the attachment of assets or for payment of any amount is not satisfied within 7 (seven) days after the date on which it is issued.
    - You compromise or attempt to compromise with your creditors generally or defer payment of debts owing by you to your creditors.

25.2 If we breach any material provision of this agreement and do not remedy this breach within 20 (twenty) business days after receiving written notice from you asking us to do so, then you will be entitled to cancel this agreement with immediate effect or to claim specific performance of all of our obligations which are due at that time, in either event without prejudice to your right to claim damages and other rights under this agreement or in law.

26 **Resolution of disputes**

26.1 If any dispute arises between the parties about the interpretation or application of the provisions of this agreement, this dispute will, unless the parties resolve it, be referred to and be settled by arbitration in terms of this clause. This excludes a dispute of when a party is in breach of this agreement, but includes a dispute about the agreement being ended or the validity of any documents given by the parties according to the provisions of this agreement.

26.2 Any party to this agreement may demand that a dispute be settled in terms of this clause by giving written notice to the other party.

26.3 This clause will not stop any party from obtaining urgent interim relief from a court of competent jurisdiction pending the decision of the arbitrator.

26.4 The arbitration will be held:

- in Pretoria;
- with only the legal and other representatives of the parties to the dispute present;
- according to the formalities and procedures decided on by the arbitrator, and may be held in an informal and summary manner, on the basis that it will not be necessary to observe or carry out the usual formalities or procedures, pleadings and discovery or the strict rules of evidence, it being the intention that the arbitration will be held and completed as soon as possible; and
- on the basis that the arbitrator will be entitled to decide the dispute according to what he considers to be just and equitable in the circumstances.

26.5 The following arbitrators will be acceptable to both parties. If the matter in dispute is principally:

- a legal matter, a practising attorney or advocate of at least 10 (ten) years' standing;
- an accounting matter, a practising chartered accountant of at least 10 (ten) years' standing;
- any other matter, any independent person.

26.6 If the parties to the dispute do not agree on whether the dispute is principally a legal, accounting or other matter within 7 (seven) days after the arbitration was demanded, the matter will be regarded as a legal matter.

26.7 If the parties do not agree on an arbitrator within 14 (fourteen) days after giving of notice in terms of clause 26.2 the arbitrator will be appointed at the request of any party to the dispute by the chairman for the time being of the Pretoria Bar Council according to the provisions of clauses 26.5 and 26.6.

26.8 The arbitrator's decision will be final and binding on the parties to the dispute. The arbitrator's decision may be made an order of any court under whose jurisdiction the parties fall at the instance of any of the parties to the dispute.

26.9 The arbitrator will have the right to make such award, including an award for specific performance, an interdict, damages or a penalty or otherwise as he or she considers appropriate. The arbitrator will have the right to deal with the question of costs, including if applicable, costs on the attorney and client scale, and his/her own fees, as he or she considers appropriate.

26.10 The provisions of this clause is an irrevocable consent by the parties to the proceedings envisaged in this clause and no party will have the right to withdraw from these proceedings or claim at these proceedings that it is not bound by the provisions of this clause.

27 **Duration**

This agreement will be effective from the date on which it was signed. It will remain valid for an indefinite period until one of the parties ends it by giving to the other 30 (thirty) days' written notice, subject to the express provisions of this agreement that entitle either party to cancel/end this agreement.

28 **General**

28.1 This agreement is only valid and the parties are only legally obliged to comply with it if it is in writing and signed by or on behalf of all the parties. Unless this agreement provides otherwise, to be valid, all changes to this agreement must be in writing and signed by all parties.

28.2 We do not lose any of our rights under this agreement if we do not immediately and in every instance insist on them. You may not raise it as a defence if we have a right that we did not enforce at the relevant time. For example, if we allow you extra time to pay the fees you owe us in 1 (one) month, it does not mean we have allowed you extra time to pay these fees in the next or any other month.

28.3 You may not transfer any of your rights or obligations under this agreement to anyone else without our prior written permission.

- We may set off any amount which we have to pay you, against any amount which you have to pay to us in respect of any account which you hold with us, as may be permissible in law. You must immediately pay us any amount owing by you to us after setoff.
- We may consolidate all accounts which you hold with us, as may be permissible in law. No partial consolidation will prevent us from exercising our rights in respect of any accounts or amounts which we did not include in this consolidation.

28.4 Nothing in this agreement may be taken to mean that you are our partner or agent. Neither party may do anything or allow anything to be done that might cause anyone to reasonably believe that we are partners or agents of each other.

28.5 When you sign this agreement, you confirm that you have read and understand the terms and conditions of this agreement.

29 **Your chosen address**

29.1 You choose the physical address and email address in South Africa on the title page of this agreement as the address at which you agree to accept any notices we send to you (including letters reminding you of any payments under this agreement you may have missed), where we may serve any legal process and may execute on any judgment we obtain against you and for all other purposes relating to this agreement. (This address is known in law as your *domicilium citandi et executandi*.)

29.2 If you want to change this address or email address, you must send us a notice in writing by registered post. This notice must:

- tell us that you are changing your address or email address; and
- set out the new address or email address which you agree will be used for this purpose. This new address must be a physical address in the Republic of South Africa.

29.3 If we send a notice to you:

- by prepaid registered post to your chosen address, we will presume that you received it 7 (seven) days after we posted it;
- by hand to your chosen address, we are entitled to presume that you received it on the date on which we delivered it; and
- by email at the email address which is part of your chosen address, we will treat it as if you have received it at the time of the transmission.

29.4 When we presume that you received a notice by a certain date, this means we do not have to prove that you did receive it then. If you claim that you did not receive the notice by that date then you will have to prove it.

29.5 If you have actually received a written notice or communication from us, even if it was not sent to or delivered at your chosen address, postal address or email address, it will still be a valid notice.

29.6 If you change your address but do not notify us, you agree that we have the right to send notices to you and serve legal processes at your last address known to us or any other address you have given us proper notice of.

30 **Governing law and jurisdiction**

30.1 This agreement is in all respects governed by the laws of the Republic of South Africa.

30.2 You agree that we may bring legal proceedings against you relating to this agreement in any Magistrate's Court that has the authority to hear and decide on the case. (This authority is called jurisdiction). You agree to the jurisdiction of the Magistrate's Court even if the amount we claim from you is more than the Magistrate's Court limit. This does not prevent us from bringing legal proceedings in a high Court that has jurisdiction.

31 **Costs and expenses**

31.1 You must pay and refund us on demand for all reasonable:

- costs, fees and expenses (including legal fees) and other out-of-pocket expenses which we incur in connection with:
  - any variation or amendment to this agreement and the documents, matters or things referred to in this agreement;
  - the investigation of any default or potential default under this agreement; and
- costs, fees and expenses (including legal fees on the attorney and own client scale and other out-of-pocket expenses and any VAT or other similar tax) which we incur in connection with maintaining and enforcing our rights under this agreement.

32 **Certificates**

A certificate signed by one of our managers is sufficient evidence of any amount that you owe and that is due to us under this agreement. Unless you can prove the contrary, we may use this certificate to obtain provisional sentence, default judgment or summary judgment or to commence with any other legal proceedings. You agree that we do not have to prove the appointment of the manager who signs the certificate.

33 **Entire agreement**

This agreement is the only record of the agreement between the parties in regard to the subject matter of this agreement. Unless a court holds otherwise, no party is legally obliged to comply with any term, condition or undertaking, not recorded in this agreement and this agreement replaces any arrangement or understanding held by the parties before this agreement was signed.

34 **Separation of Clauses**

34.1 The parties acknowledge that each clause of this agreement is separate. If any clause of this agreement is or becomes illegal, invalid or unenforceable for any reason, it must be treated as if it had not been included in this agreement. This does not:

- make the rest of the agreement illegal, invalid or unenforceable;
- affect the legality, validity or enforceability of any other clause or this agreement as a whole.

35 **The parties do not have to sign in the presence of each other**

The parties might not be present at the same time or place to sign this agreement. For this reason, different versions of the same agreement may be signed by the parties. Together the signed versions will make up the original agreement between the parties.

36 **Financial status**

36.1 By signing this agreement you confirm the following:

- You have checked the information we have about your personal, financial and account details and you agree that we may verify this information.
- The information we have about your personal, financial and account details is correct.
- You have not applied for and no order has been given against you for sequestration, liquidation or judicial management.
- You have not entered into a compromise with any of your creditors or attempted to do so generally or defer payment of debts owing by you.
- No business rescue proceedings have begun in relation to your business, as contemplated in the Companies Act 71 of 2008.
- You understand that if any of these statements are not true, it may prevent you from exercising some or all of your rights.

Signed at _____ on 20/02/2026

Witnesses

1 _____ _____
On our behalf

2 _____ _____
On our behalf

Signed at _____ on 20/02/2026

Witnesses

1 _____ _____
For and on your behalf, duly authorised thereto

2 _____ _____
For and on your behalf, duly authorised thereto

Schedule A

to Merchant Agreement

[Item	Merchant fee category	Rate
1	Local Credit – CP – Both EMV compliant	
2	Local Credit – CP – Acquirer EMV compliant	
3	Local Credit – Issuer EMV compliant	
4	Local Credit – CNP/Manual/MOTO/Both 3D compliant/AMT	2.70%
5	Local Debit – CP – Both EMV compliant	
6	Local Debit – CP – Acquirer EMV compliant	
7	Local Debit – CP – Issuer EMV compliant	
8	Local Debit – CNP/manual/MOTO/Both 3D compliant (authenticated transaction)/AMT	2.70%
9	Local Credit – CNP – Acquirer 3D compliant (authentication attempted)	2.70%
10	Local Credit – CNP – Issuer 3D compliant (Non-3D merchant and/or authentication not attempted)	2.70%
11	Local Debit – CNP – Acquirer 3D compliant (authentication attempted)	2.70%
12	Local Debit – CNP – Issuer 3D compliant (Non-3D merchant and/or authentication not attempted)	2.70%
13	VISA International – Normal	3.0%
14	VISA International – Downgraded	3.0%
15	MC International – Normal	3.0%
16	MC International – Downgraded	3.0%

Schedule B
(Fees charged excluding VAT)

3-D Secure Transaction	Transaction fee	Monthly service fee
Account administration fee	0	0
Chargeback Fee (charged per chargeback)	0	0

Multi-currency Programme Terms and Conditions

Confidential

Between

Absa Bank Limited ("**us/we**")

and

Cameron Falck (T/A Slip-A-Tip) ("**you**")

Registration number 9603175411083

1 **Introduction**

1.1 This agreement supplements the merchant agreement between you and us ("**merchant agreement**").

1.2 By signing below, you agree to implement our multi-currency service, powered by Planet Payment Inc., an international payment and data processor (the "**programme**").

2 **How to interpret this agreement**

2.1 All terms used in this agreement and which are defined in and for purposes of the merchant agreement, have the same meaning as defined in the merchant agreement.

2.2 The terms and conditions of the merchant agreement apply, with the necessary changes, to this agreement. If there is a conflict between the provisions of this agreement and those of the merchant agreement, the provisions of this agreement will apply.

3 **Duration**

3.1 This agreement is not effective until we send you a written notice to the effect that we have approved your participation in the programme.

3.2 You have the right to cancel this agreement at any time. This is done by sending us a written notice to that effect at least 30 (thirty) days before the date on which this agreement will end.

3.3 We may terminate or suspend the programme for any reason on reasonable notice to you.

4 **Description of the programme**

4.1 The programme enables some of your clients ("**foreign cardholders**"), whose cards are denominated in currencies other than South African Rand ("**programme currency**"), to use their cards to pay for purchases in South Africa in that programme currency on your website.

4.2 We will settle each of these transactions (collectively, "**foreign transactions**") in South African Rand. For this purpose, you acknowledge and agree that:

4.2.1 each foreign transaction will be converted to the programme currency in which the card is denominated based upon an exchange rate in effect at the time of authorisation of retail transactions; and

4.2.2 each foreign transaction must be cleared through the relevant card association in the programme currency in which the card is denominated.

4.3 The programme only applies to those cards issued by the card associations included in the programme that are billed to the foreign cardholder in a programme currency. The programme does not apply to:

4.3.1 credit-return transactions; and

4 3.2 certain foreign transactions that are referred to us for authorisation or which you ask us to authorise by telephone.

4.4 We may at any time add or delete any currency as a foreign currency for purposes of the programme, without having to give you any notice.

5 **Programme requirements**

5.1 You will comply with all reasonable instructions which we give you from time to time regarding your participation in the programme.

5.2 **Returns**: unless you use technology that is capable of credit returns in the programme currency in the manner we require, we will convert a return to a foreign cardholder's account, reflecting either the partial or complete return or reimbursement of a foreign transaction, to the relevant programme currency using the exchange on the date when you present the credit to us. We will clear that credit as converted, through the applicable card association in the programme currency in which the card is denominated. If this support is not in place, then we will process this credit/return transaction in South African Rand, subject to applicable card association rules.

5.2.1 **Chargebacks**: if there is a chargeback on a foreign transaction, it will be transmitted to us by the applicable card association in the applicable programme currency and converted by that card association into South African Rand and at the card association's designated foreign exchange rate on the date of the conversion. Given the potential for variations in exchange rates which each card association will apply to the underlying foreign transaction and chargeback, you acknowledge and agree that:

- the original amount of the chargeback is likely to differ from the original settlement amount which you received for the foreign transaction in South Africa;

- you are liable for and must pay the full amount of the chargeback in accordance with the terms and conditions of the merchant agreement; and
- you are liable for and must pay any increased interchange costs attributable to the increase in the price of the goods or services in South African Rand prior to the conversion of the applicable service fee.

6 **Indemnity**

You promise to make good any loss, damage, costs, expense (including reasonable attorney's fees) or other liability arising from or in connection with any injury to persons, property or reputation which we, Planet Payment or any card association ("**indemnified party**") incurs or suffers at any time, and to pay any claim or demand for payment, judgment, action or arbitral award brought or obtained against any indemnified party at any time, because of (that is, as a result of or in connection with):

6.1 your participation in the programme;

6.2 any foreign transaction which you process and any of your related acts or omissions;

6.3 your use of any third-party vendor for foreign transactions and your violation of any applicable laws or card association operation regulations;

6.4 you being in default under this agreement or the merchant agreement;

6.5 any return of goods, price adjustments or disputes with or claim by any foreign cardholder with or against you (whether this foreign cardholder's claim is valid or not) and including claims or losses of any foreign card holder or any third party;

6.6 you honouring or refusing to honour any foreign card holder's card;

6.7 your failure to adequately provide required or recommended disclosures or notifications; and

6.8 you retaining cards in accordance with card association merchant operating procedures, unless the indemnified party suffered or incurred this loss, damage, cost, expense or other liability, or this claim or demand was brought against us, because of our own gross negligence or fraudulent intent or that of any person acting for or controlled by us. (This is known in law as an indemnity.)

7 **General**

7.1 Unless specifically changed in this agreement, all the terms and conditions of the merchant agreement remain unchanged and of full force and effect.

7.2 Each of the provisions of the merchant agreement must be treated as having been incorporated into and forming part of this agreement.

7.3 Each party acknowledges that:

7.3.1 he/she is a party to the merchant agreement;

7.3.2 he/she has been provided with a copy of and is familiar with the merchant agreement; and

7.3.3 by signing this agreement, he/she consents to the incorporation of the provisions of the merchant agreement referred to above into this agreement and agrees to be bound by these provisions as if they were specifically stated in this agreement.

You confirm that we have given you an adequate opportunity to read and understand the terms and conditions of this addendum and that you are aware of all the terms printed in bold.

Signed at _____ on _____
who warrants that he/she is authorised to sign this agreement on your behalf.

Witness

1 _____ Date (dd/mm/ccyy) | | | | | | | | |

2 _____ Date (dd/mm/ccyy) | | | | | | | | |

Signed at _____ on 20/02/2026
who warrants that he/she is authorised to sign this agreement on your behalf.

Witness

1 _____ Date (dd/mm/ccyy) | | | | | | | | |

2 _____ Date (dd/mm/ccyy) | | | | | | | | |

Payment Acceptance: Merchant Application: Application for Registration (Private and Confidential)

Confidential

CASA Ref

- It is critical that the pre-printed information is correct and the remainder of the application is completed in full.
- The completion of the application does not imply acceptance by Absa. Please note that Absa will complete a full credit survey based on the information supplied in this application.
- These enquiries can take up to 14 (fourteen) working days to complete.
- Please complete in **block letters** and tick (✓) where necessary.
- Please delete as applicable.

Merchant type

Desktop, Mobile, E-commerce, Integrated, Batchlink, Xpressa

other (specify)

DCC, LVP, PECB or other (specify)

CSP name: Walletdoc

Website

IP address

Web developer

Contact name and no of Web developer

The applicant

No of outlets requiring card facilities.
If greater than 1, please complete "Additional outlets/Link to applications/Corporate applications" form for each)

Trading name of applicant: Cameron Falck (T/A Slip-A-Tip)

Postal address: 91 A Meyer Street, George, South Africa, 6529

Postal code: 6529

Trading address: 91 A Meyer Street, George, South Africa, 6529

Postal code: 6529

humbzup issued device (TZUP-Y)

Yes | No ✓ (Pebble included)

Contact name: Cameron Falck

Contact telephone no: 0662995533

Fax no

VAT registration no

Cellphone no: 0662995533

Preferred language: English

Receive merchant statements via email

Yes ✓ | No

Email address for merchant statements: cameronfalck03@gmail.com

Business banking details

Name of applicant's business bank: Capitec Bank Limited

Branch name

Account no: 1541947922

Funding account no for LVP, PECB or other

Branch code: 470010

Name of account: Cameron Falck (T/A Slip-A-Tip)

Note: Attach CIPC documents for non-individuals.

Office use CIF

New or existing

New merchant no

Existing merchant no

Chain no: 2455426

FICA checked: Yes | No

MASC

Region

Prin/Absa/Corp

Association code: 41

Cost Centre

Officer code: KAM06

Merchant category code: 7299

Minimum discount

Business details

Type of entity

- [ ] Non-individuals/Company/Close Corporation/Trust
- [ ] Individuals/Temporary Resident/Non-resident
- [x] Sole Trader
- [ ] Joint and Several
- [ ] Partnership
- [ ] Other (specify)
  (e.g. Estate late Insolvent, Pension Fund)

Trading name: Cameron Falck (T/A Slip-A-Tip)

Registration/Practice/Trust deed no: 9603175411083

Business start date (dd/mm/ccyy):

Where is business for VAT?

Is business registered for VAT? Yes / No

Income tax no

VAT registration no

Financial year end

Non-individuals/Company/Close Corporation/Trust

Contact number: 0662995533

Email address: cameronfalck03@gmail.com

Registered address: 91 A Meyer Street, George, South Africa, 6529

Registered address city

Registered address country: South Africa

Registered address postal code: 6529

Physical operating address: 91 A Meyer Street, George, South Africa, 6529

Physical operating address city

Physical operating address country: South Africa

Physical operating postal code: 6529

Is the physical operating address the same as the Head Office address? Yes

Head Office address

Head Office address city

Head Office address country

Head Office address postal code

Countries within which the entity operate(s): South Africa

Individuals/Temporary resident/Non-resident

Gender: [ ] Male [ ] Female

Contact number

Email address

Nationality

Country of birth

Physical address

Physical address city

Physical address country

Physical address postal code

Sole Trader

Physical operating address

Physical operating address city

Physical operating address country

Physical operating address postal code

Is the physical operating address the same as the Head Office address?

Head Office address

Head Office address city

Head Office address country

Head Office address postal code

Joint and Several

Per individual

Gender: Male Female Contact number

Email address Nationality

Country of birth

Physical address

Physical address city Physical address country

Physical address postal code

Joint and Several

Per individual

Gender: Male Female Contact number

Email address Nationality

Country of birth

Physical address

Physical address city Physical address country

Physical address postal code

Partnership

Physical operating address

Physical operating address city Physical operating address country

Physical operating address postal code

Is the physical operating address the same as the Head Office address?

Head Office address

Head Office address city Head Office address country

Head Office address postal code

Partners

Gender: Male Female Contact number

Email address Nationality

Country of birth

Physical address

Physical address city Physical address country

Physical address postal code

Partnership

Physical operating address

Physical operating address city Physical operating address country

Physical operating address postal code

Is the physical operating address the same as the Head Office address?

Head Office address

Head Office address city Head Office address country

Head Office address postal code

Partners

Gender: Male Female Contact number

Email address Nationality

Country of birth

Physical address

Physical address city | Physical address country

Physical address postal code

Partnership

Physical operating address

Physical operating address city | Physical operating address country

Physical operating address postal code

Is the physical operating address the same as the Head Office address?

Head Office address

Head Office address city | Head Office address country

Head Office address postal code

Partners

Gender: Male Female | Contact number

Email address | Nationality

Country of birth

Physical address

Physical address city | Physical address country

Physical address postal code

Partnership

Physical operating address

Physical operating address city | Physical operating address country

Physical operating address postal code

Is the physical operating address the same as the Head Office address?

Head Office address

Head Office address city | Head Office address country

Head Office address postal code

Partners

Gender: Male Female | Contact number

Email address | Nationality

Country of birth

Physical address

Physical address city | Physical address country

Physical address postal code

LVP

Load fee rebate

Balance enquiry rebate

PIN charges rebate

JBCB

ITC: Yes | No

Cheque conduct: Yes | No

Bank report: Yes | No

Experian: Yes | No

Match: Yes | No

Sales activity

Please fully describe the products and/or services that will be sold and the methods that will be used.

Miscellaneous Personal Services

Annual business turnover

R 50000 (accrual/estimate)

Annual card turnover of the business

R 50000 (accrual/estimate)

Average card transaction value of the business

R 25 (accrual/estimate)

Average ticket value on credit card and debit card

R 25 (credit card) R 25 (debit card)

Personal information

Correspondence language: English ✓ Afrikaans

Employment status (01 - Full-time employed, 02 - Self-employed professional, 03 - Self-employed non-professional, 04 - Housewife, 05 - Student, 06 Unemployed, 07 - Pensioner, 08 - Part-time/ Contract worker, 09 - Temporary employed, 10 - Pre-school/Scholar)

Occupation

Personal banking details

Name of applicant's personal bank

Branch name and branch code

Account no

Name of account

Exposure calculation matrix

Please complete highlighted boxes

	%	
Percentage of goods and services taken away at point of sale	100%	
Percentage of goods and services with deferred delivery	0%	
Monthly card turnover with deferred delivery R		
Deferred delivery sales	%	Exposure R
Goods delivered within 1 (one) – 7 (seven) days		
Goods delivered within 8 (eight) – 14 (fourteen) days		
Goods delivered within 15 (fifteen) – 30 (thirty) days		
Goods delivered within 30 (thirty) – 60 (sixty) days		
Goods delivered within 60 (sixty) plus days		
Total exposure		-

Occupation

Personal banking details

Name of applicant's personal bank

Branch name and branch code

Account no

Name of account

Note: To be completed if the business account is less than 6 (six) months old.
No applications will be considered if your business is correctly in **rescue**.
This application form must be accompanied by the Physical Site Visit Verification form: Absa 3121 BX.

Cards to be accepted

MasterCard credit cards

Yes	No

MasterCard debit cards

Yes	No

MasterCard Maestro

Yes	No

MasterCard pre-paid

Yes	No

Electron (Visa debit cards)

Yes	No

Union Pay International

Yes	No

American Express cards. If "**Yes**", provide Amex no

Yes	No	**No**	

Diners Club cards. If "**Yes**", provide Diners Membership no

Yes	No	**No**	

Buy-aid cards. If "**Yes**", provide Membership no

Yes	No	**No**	

Koopkrag cards. If "**Yes**", provide Membership no

Yes	No	**No**	

Iemas cards. If "**Yes**", provide Membership no

Yes	No	**No**	

Cape Consumer cards. If "**Yes**", provide Membership no

Yes	No	**No**	

Samba cards. If "**Yes**", provide Membership no

Yes	No	**No**	

Medical

Yes	No

Garage cards and Petro cards

Yes	No

Fleet

Yes	No

RCS. If "**Yes**", provide RCS no

Yes	No	**No**	

Merchant no

Group ID

General, Excel, Batchlink, Caltex, BP, Punch card or other (If other, please specify)

General

Merchant class

Retail, forecourt , restaurant, Sasol, workshop, inhouse forecourt, medical retail or other (if other, please specify).

Configuration

Other (please specify)

Text

Header text (3 rows with 19 characters each)

Terminal (1)

Serial no

Sec mod

Branch ID

Fee code

Dial time

Terminal (2)

Serial no

Sec mod

Branch ID

Fee code

Dial time

Terminal (3)

Serial no

Sec mod

Branch ID

Fee code

Dial time

Communication

Fastnet, X-Link, Connectnet or other (if other, please specify)

MMAB

Account domicile CIF

EDC

Yes	No

Minimum discount

Floor limit (ordinary)

R

Floor limit (gold)

R

CSP ID

DCC

% on DCC

Merchant fee category

Item	Merchant fee category	Rate
1	Local Credit - CP - Both EMV compliant	
2	Local Credit - CP - Acquirer EMV compliant	
3	Local Credit - Issuer EMV compliant	
4	Local Credit - CNP/Manual/MOTO/Both 3D compliant/AMT	2.70%
5	Local Debit - CP - Both EMV compliant	
6	Local Debit - CP - Acquirer EMV compliant	
7	Local Debit - CP - Issuer EMV compliant	
8	Local Debit - CNP/Manual/MOTO/Both 3D compliant (authenticated transaction)/AMT	2.70%
9	Local Credit - CNP - Acquire 3D compliant (authentication attempted)	2.70%
10	Local Credit - CNP - Issuer 3D compliant (Non-3D merchant and/or authentication not attempted)	2.70%
11	Local Debit - CNP - Acquirer 3D compliant (authentication attempted)	2.70%
12	Local Debit - CNP - Issuer 3D compliant (Non-3D merchant and/or authentication not attempted)	2.70%
13	VISA International - Normal	3.0%
14	VISA International - Downgraded	3.0%
15	MC International - Normal	3.0%
16	MC International - Downgraded	3.0%
17	Union Pay International	

PCI DSS – Completing the self-assessment questionnaire

To be completed if the following conditions apply:

- Your company uses standalone, dial-out terminals (connected via a phone line to your processor).
- Your standalone dial-out terminals are not connected to any other other systems or to the internet.
- Your company retains only paper reports or paper copies of receipts.
- Your company does not store cardholder data in electronic format.

Relationships

Does your company have a relationship with one or more third-party service providers (for example, gateways, webhosting companies, airline booking agents, loyalty programme agents, etc.)?

Yes	No ✓

Does your company have a relationship with more than one acquiring bank?

Yes	No ✓

Are you a member of an organisation where you would qualify for a reduced merchant service fee?

Yes	No ✓

If at the time of this application you are not a member of an organisation where you qualify for a reduced merchant service fee and you subsequently join an organisation at a later stage, the onus is on you to advise us accordingly. Your failure to advise us will not oblige us to refund any reduced merchant service fee.

Eligibility to complete self-assessment questionnaire

Merchant certifies eligibility to complete this shortened version of the self-assessment questionnaire because:

Merchant only uses Absa's supplied standalone, dial-up devices, are not connected to the internet or any system within the merchant environment.

Yes ✓	No

Merchant does not store cardholder data in electronic format.

PCI DSS validation

_____ (Company name)

Payment application in use

_____

Payment application version

_____

Confirmation of complaint status

I have confirmed with my payment application vendor that my payment system does not store sensitive data after authorisation.

Yes ✓	No

If merchant does not store cardholder data, such data is only reports or copies on paper receipts and are not received electronically.

Yes ✓	No

I have read the PCI DSS requirements as stipulated on pcisecuritystandards.org and I recognise that I maintain full PCI DSS compliance at all times.

Yes ✓	No

Declaration

- I/We authorise you to make any enquiry you deem necessary in connection with the application for a merchant facility.
- I/We warrant that the information supplied in respect of my/our application for a merchant facility is true and correct.
- I/We warrant that the conduct of business and any advertisement will conform to the requirements of any application legislation.
- Should Absa Card grant a merchant facility, I/we undertake not to process sales vouchers on behalf of any third party, individual or business.
- I/We further warrant that I/we hold the authority to sign on behalf of the applicant.
- I/We authorise you to obtain a banker's status enquiry.
- I/We want to accept Diners Club, American Express or Fleet cards, I/we hereby authorise Absa Card to provide my/our bank account detail to the relevant card issuers.
- I/We hereby confirm that the Bank will do reference checks, which will include but not be limited to suppliers, businesses as well as neighbours of my/our business.
- I/We consent to these checks being done and information being collected by the Bank.

Absa Bank Limited ("**Absa**") is committed to complying with national and international law, rules, regulations and policies regarding the combating of criminal activities, money laundering and terrorist financing. All applications and all information concerning clients are subject to verification, processing and screening and Absa may be obliged to decline certain applications. In addition, all information, instructions and transactions for and on behalf of the client will be subject to continuous screening which may prohibit, limit or delay the execution thereof and which may oblige Absa to terminate its relationship with the client. To the extent permissible, **Absa shall advise the client of any prohibitions or limitations on such applications, instructions or transactions. Absa, or its respective affiliates, employees, officers and directors, shall not be liable for any special, punitive, indirect or consequential losses and damages, including, without limitation, loss of profits or any anticipated savings.**

Details and signatures of authorised signatories

Signature _____

Name

Position held

Date (dd/mm/ccyy) 20/02/2026

Signature _____

Name

Position held

Date (dd/mm/ccyy)

Signature _____

Name

Position held

Date (dd/mm/ccyy)

Signature _____

Name

Position held

Date (dd/mm/ccyy)

QA Region

Signature of QA at region

_____

Name of QA

Date (dd/mm/ccyy) of QA

Approval H/O

Signature of approver

_____

Name of approver

Date (dd/mm/ccyy) of approval

Personal Information Form – Business

This Form tells you how Absa may use your personal information for certain business reasons. You are also asked to make certain choices where Absa needs your permission to use your personal information. You also confirm that you understand the legal consequences of both your acceptance to the use of your personal information and the choices that you make.

How Absa will use your personal information

1 **About this Form**

1.1 This Form is an addition to all other agreements between you and Absa. If there is a term in this Form that is different from a term in another agreement that you have with Absa, the terms of this Form will apply.

1.2 If more than one person signs this Form, the word "**I**" must be read as "**we**".

1.3 The word "**Absa**" means the Absa Group Limited (registration number 1986/004794/06) and includes all subsidiaries and associates of Absa.

1.4 The word "**use**" means any uses of or activities relating to personal information, including the collection, recording or its sharing within other entities within Absa.

2 **How Absa will use your personal information**

2.1 Any of Absa's operators or agents (including those who are based outside South Africa) may use your personal information. This includes Absa's sub-contractors and their agents, professional advisers and any other similar third parties. These third parties will be bound to confidentiality agreements.

2.2 Absa may use and keep your information for as long as necessary or allowed for any of the following purposes:

- legal and regulatory;
- crime prevention;
- credit risk management services;
- marketing (with your consent);
- research (with your consent); and
- internal reporting and approval processes and policy requirements.

This includes when you are no longer a client of Absa.

2.3 For Absa to manage its risks, you accept that Absa may receive and provide your personal information, including information about how you conduct your accounts, to:

- credit risk management services (including credit bureau); and
- crime prevention agencies.

3 **Absa must check your information**

3.1 Absa must comply with national and international laws, regulations, policies, rules and requirements to prevent criminal activities, money laundering and terrorist financing, sanctions and prohibited business activity laws and rules violations. Absa must therefore check all information from and about you and monitor and screen your information, instructions and transactions on an ongoing basis. This may cause some delays in transactions that you make or accounts you apply for. We may also have to end our relationship with you without warning.

3.2 **Absa is not responsible for any losses or damages that you suffer because of these checks or by Absa ending the relationship. This includes any loss of profits or savings that you otherwise have expected to make.**

4 **Privacy Notice**

How we treat your personal information

We collect and process your personal information to enable us to provide you with products and services, amongst other things and we may share it with:

- the Absa Group, its service providers and other third parties to comply with our regulatory obligations;
- any party to whom we assign our rights under this Agreement or any of our agreements for products and services; and
- credit bureaus where credit products are applied for by you.

All the personal information we share is subject to our privacy and security requirements and we are responsible for ensuring that your personal information is processed lawfully and in a reasonable manner that does not infringe your privacy rights. We may make automated decisions based on your personal information and should you be unhappy with the outcome, please feel free to contact us. We will notify you if we intend using your personal data for other purposes.

We use your personal information to tell you about products or services that may interest you. We may contact you via SMS, email, telephone or post. If you do not wish to receive direct marketing communication, you can update your preferences via our website, banking app or at your nearest branch.

We will keep your personal information only for as long as the law requires us to. After this time, we will securely destroy or de-identify this information.

You have the right to ask us for access to your personal information and to instruct us to amend and/or delete any personal information or to object to us processing your personal information. You can also let us know if you want us to stop or to limit how we use your personal information.

If you do not agree with how we use your personal information, please lodge a complaint at actionline@absa.co.za

Please read these terms and conditions in conjunction with our detailed Privacy Statement which you can access on absa.co.za or at your nearest Absa branch.

5 **Consent to the use of your personal information**

5.1 **Marketing consent**

Electronic marketing consent

Let's stay in touch

Would you like to hear about any exciting new products, upgrade opportunities or some fantastic offer from Absa Group?

Please contact me via:

☐ Email

☐ SMS

☐ Voice recording

☑ No, thanks

(You can select one or more of the above)

5.2 **Third-party credit risk management**

Other parties sometimes ask Absa for information about your credit status because you have applied for credit with them. Absa cannot give this information to them without your permission.

Please choose below:

☐ I **give** Absa permission to give such information;

or

☐ I **do not give** Absa permission to give such information. **Absa will not be responsible for any consequences from this, such as you may not be able to get credit from these other parties.**

Signed at _____ on 20/02/2026

_____
Full names of signatory

_____ _____
Signature Capacity

_____
Full names of signatory

_____ _____
Signature Capacity

_____
Full names of signatory

_____ _____
Signature Capacity

_____
Full names of signatory

_____ _____
Signature Capacity

Confidential

walletdoc merchant agreement

1 **Parties**

The parties to this agreement are:

1.1 **walletdoc, Reg No 98/20724/07**
("we")
of Houghton Estate Office Park, 3rd Floor Palm Grove, 2 Osborn Road, Houghton, 2198, Johannesburg, South Africa
and

1.2 Cameron Falck (T/A Slip-A-Tip) Reg no 9603175411083

of 91 A Meyer Street, George, South Africa, 6529

Fax no

Cell no 0662995533

Email address cameronfalck03@gmail.com
("you")

2 **Introduction**

2.1 You agree to accept certain cards as a form of payment on the terms and conditions of this agreement.

2.2 You acknowledge that:

2.2.1 we have given you an adequate opportunity to read and understand the terms and conditions of this agreement; and

2.2.2 you are aware of all the terms printed in bold.

2.3 Card Scheme rules may require that you enter into a copy of this agreement directly with Absa Bank, in its capacity as the acquiring bank of walletdoc's transactions. We will provide you with a separate replica of this agreement that you must enter into with Absa Bank in order to continue using the POS Service, failing which, We may suspend or terminate the POS Service.

3 **How we interpret this agreement**

3.1 In this agreement, the words on the left have the meanings set out on the right unless the context clearly shows that the parties intended a different meaning:

3.1.1	**Agreement**	means this merchant agreement, including the schedules attached to this agreement, as amended, novated or replaced from time to time.
3.1.2	**ATM**	means an automated teller machine.
3.1.3	**Business day**	means any day which is not a Saturday, Sunday or South African public holiday.
3.1.4	**Business rescue**	means proceedings to facilitate the rehabilitation of a company or close corporation that is financially distressed, as contemplated in the Companies Act 71 of 2008.
3.1.5	**Card**	means each card which you select and which is listed in the services schedule.
3.1.6	**Cardholder**	means the person to whom a card has been issued.
3.1.7	**Card issuer**	means us or any other entity which issues a card.
3.1.8	**Card Scheme**	means a Payment System Operator in the payment network that processes debit and credit card transactions, of which a bank or any other eligible financial institution can become a member.
3.1.9	**Card transaction**	means only transactions made using valid cards.
3.1.10	**Chargeback**	means a transaction that is reversed because the cardholder has successfully disputed the transaction.
3.1.11	**Chip card**	means a card with an electronic processor embedded in the card that complies with the EMV integrated circuit card specifications.
3.1.12	**Code 10**	means the code which you will use to inform our authorisation centre that a cardholder is acting suspiciously or to report a suspicious transaction.
3.1.13	**CPA**	means the Consumer Protection Act 68 of 2008 and its regulations, as amended or replaced from time to time.
3.1.14	**Credit card**	means a card which the cardholder may use for credit card transactions.
3.1.15	**Credit card transaction**	means the purchase of any goods or services, balance enquiries and cash withdrawals which the cardholder makes using a credit card and which results in the cardholder's account being debited with the total amount of the credit card transaction.
3.1.16	**Debit card**	means a card which the cardholder may use for debit card transactions.
3.1.17	**Debit card transaction**	means the purchase of any goods or services, balance enquiries and cash withdrawals which the cardholder makes using a debit card and which results in the cardholder's account being debited with the total amount of the debit card transaction.
3.1.18	**Electronic authorisation**	means a facility available to you to get our authorisation for a function transaction by using the POS terminal.
3.1.19	**Electronic transaction**	means a transaction processed through a POS terminal and which results in the electronic transfer of funds.
3.1.20	**EMV**	means the standard for interoperation between chip cards and POS terminals and ATMs which allows for the authentication of credit and debit card payments.
3.1.21	**Equipment and rental schedule**	means the schedule equipment and rental which we provided to you before you signed this agreement and which is attached to this agreement as schedule D. Schedule D may be updated or replaced by agreement between you and us from time to time. If this happens, each updated or replaced schedule will be signed by both parties and attached to this agreement as schedule D, superseding and replacing all previous versions.
3.1.22	**Floor limit**	means the total value, including any part of the value of sales, which you may permit a cardholder to spend on a card on any one occasion without advance authorisation from the card issuer.

3.1.23 **Floor limits schedule** means the schedule of floor limits attached to this agreement as schedule C. Schedule C may be updated or replaced by agreement between you and us from time to time. If this happens, each updated or replaced schedule will be signed by both parties and attached to this agreement as schedule C, superseding and replacing all previous versions.

3.1.24 **Laundering** means the process of taking the proceeds of criminal activity and making them appear legal.

3.1.25 **Med-card** means a card which the cardholder may use for med-card transactions.

3.1.26 **Med-card transaction** means a transaction in terms of which the cardholder purchases or obtains medical services and products from suppliers of medical services and products only. This results in the cardholder's medical card account being debited with the total amount of the med-card transaction.

3.1.27 **Merchant service fee** means a portion of the total value of all card transactions which you process and must pay to us. This is calculated as a percentage of the total monthly value of all sales vouchers which you deposited with us during that month, plus the value of all POS terminal generated receipts which you posted electronically during that month.

3.1.28 **Merchant rules** means the terms and conditions specified by the card schemes from time to time. You can access the rules for MasterCard at mastercard.com and for VISA at visa.com or any other websites which we will tell you about from time to time.

3.1.29 **Merchant supervisor function** means the POS terminal function which enables you (and your employees if you have authorised them to do so) to perform certain functions by using a supervisor card and secret code which we give to you.

3.1.30 **PCI DSS** means the auditable set of payment card industry data security standards specified by the card associations from time to time, which you can access at (pcisecuritystandards.org) or any other websites where you can access these standards which we will tell you about from time to time.

3.1.31 **Person** means both an individual and a juristic person unless the context clearly means one or the other only.

3.1.32 **PIN** means the personal identification number issued to the cardholder by the card issuer, or the personal identification number which the cardholder chooses from time to time.

3.1.33 **POS service** means the point of sale service which we provide to you and which enables you to capture and send electronic data to us.

3.1.34 **POS terminal** means the point of sale terminal at the point of sale which we have supplied to you or approved for your use (as the case may be).

3.1.35 **Prime overdraft rate** means the publicly quoted basic rate of interest (per cent, per year, compounded monthly in arrears and calculated on the basis of a 365 (three hundred and sixty five) day year irrespective of whether or not the year is a leap year) published by Absa Bank Limited from time to time as being your prime rate, as certified by any of that bank's managers whose authority, appointment and designation need not be proved.

3.1.36 **Schedule E** means the merchant fee categories as set out in Schedule E.

3.1.37 **Services schedule** means the schedule of services attached to this Agreement as schedule A. Schedule A may be amended or replaced by Agreement between you and us from time to time. If this happens, each amended or updated schedule will be signed by both parties and attached to this Agreement as schedule A, superseding and replacing all previous versions.

3.1.38 **Signature date** means the date on which this Agreement is signed by the party that signs it last in time.

3.1.39 **VAT** means value added tax payable in terms of the Value Added Tax Act 89 of 1991.

3.1.40 **We** means walletdoc (pty) ltd (Reg No 98/20724/07), a private company duly registered under the laws of the Republic of South Africa.

3.1.41 **Workshop voucher** means a sales voucher or POS terminal generated receipt which reflects the Agreement entered into between you and the cardholder when you sell the cardholder any spares or accessories, or when you provide any maintenance, repair or other services to the cardholder.

3.1.42 **You** means our client identified by name on the title page of this agreement.

3.2 Reference to:

3.2.1 one gender includes all the genders;

3.2.2 the singular form of a word includes the plural;

3.2.3 the plural form of a word includes the singular; and

3.2.4 a law or regulation is a reference to that law or regulation on the date you sign this agreement.

3.3 This Agreement is subject to the CPA and all other applicable legislation from time to time. The Scheme rules for South Africa also apply to this Agreement in so far as each is compatible with these terms and conditions and with South African laws and regulations. If there is a conflict between these terms and conditions and the Scheme rules then these terms and conditions apply.

4 Accepting cards

4.1 You agree to accept each valid Card presented by the rightful Cardholder to you as payment for any goods or services or combination of goods and services which you offer.

4.2 You agree not to set any minimum limit or maximum limit on transaction values for which you accept card payments. You must, treat purchases by Card in exactly the same way as cash purchases, including charging the same price.

4.3 You may allow cash withdrawals at a POS by credit and debit card holders.

4.4 You may not accept cards for the purchase of securities as defined in the Securities Services Act 36 of 2004, as amended or replaced from time to time.

4.5 All POS terminals and electronic devices used by you, including those supplied by a third party, must be able to accept and process chip cards according to EMV specifications.

4.6 You will make sure that you and your agents and sub-contractors comply with all obligations relating to data security and PCI DSS. You can access full details of the applicable obligations and processes at the PCI DSS website (pcisecuritystandards.org).

4.7 You will be liable for and indemnify us against any penalty imposed by a Card Scheme and/or Payment Association of South Africa and against any loss, damage or other liability which we incur if you fail to comply with the EMV standards, PCI DSS or any other regulatory requirements.

5 **Floor limits**

5.1 The authorised floor limits for each of your business premises are set out in the floor limits schedule.

5.2 We will have the right to change these floor limits from time to time.

5.3 If you process chip card transactions using the magnetic stripe data or by manually entering card data, a zero floor limit will apply and you must get our authorisation for all of these transactions.

6 **Authorisation**

6.1 You must use the POS terminal electronic authorisation function for all authorisations.

6.2 You must ensure that the authorisation code number appears on all receipts.

6.3 You may not split or disguise transactions or act in any way to avoid obtaining authorisation.

6.4 You must get authorisation in advance from us:

6.4.1 for all budget transactions;

6.4.2 if the cardholder presents an expired card;

6.4.3 if the cardholder fails to present his/her card;

6.4.4 if the cardholder's signature panel is blank or if you are suspicious of the transaction.

6.4.5 for all transactions which are more than the authorised floor limit, if you use a sales voucher or the POS terminal tells you to do so; and

6.4.6 for all debit and med-card transactions.

6.5 Any payment we make, for which you did not get our required authorization in advance, will be without prejudice to our rights.

6.6 **Authorisation means the Cardholder has enough money in his card account to pay for the authorised transaction at the time and on the date of the authorisation. By authorising a transaction we do not warrant:**

6.6.1 **the validity or genuineness of the card;**

6.6.2 **the identity and capacity of the person presenting the card;**

6.6.3 **that we will pay the value of the authorised transaction; and**

6.6.4 **that we will not chargeback the transaction.**

7 **Merchant's obligations in respect of sales vouchers and POS terminals**

7.1 You must only use sales vouchers and tally rolls that we or your authorised suppliers issue and approve.

7.2 You must imprint a copy of the card on the sales voucher using an imprinter we approved. If we supply you with an imprinter, you must pay us the fee set out in the equipment and rental schedule. For an electronic transaction, you must swipe the card through the card reader which forms part of the POS terminal.

7.3 If, in the circumstances set out in 7.2, you do a manual transaction through the POS terminal, you must imprint a copy of the card on the sales voucher using a manual imprinter.

7.4 You must make sure that the time mechanism which forms part of the POS terminal reflects the correct date and time, by using the merchant supervisor function.

7.5 The cardholder must sign the sales voucher (or receipt) and if the signature does not match the signature on the back of the Card, you must get our authorisation before you proceed with the transaction.

7.6 You must check that the transaction date is not before the start date indicated on the card or after the expiry date indicated on the card.

7.7 You must retain a copy of each signed sales voucher or POS terminal generated receipt for a period of at least 180 (one hundred and eighty) days from the date of each transaction and submit your copy to us if we ask for it within 7 (seven) business days from the date on which we ask, failing which we will be entitled to debit your account with the amount of the transaction.

7.8 **You acknowledge that you will be in default under this Agreement if you launder sales vouchers.**

8 **Presentation for payment**

8.1 We will pay you the value of valid transactions within 2 (two) business days after we receive a POS terminal generated receipt from you which shows that you posted a related electronic transaction. We will not pay where we are able to prove that you are not entitled to payment because you are guilty of asking for unlawful or excessive chargebacks, fraud, or posting invalid transactions, as explained in this agreement.

8.2 In the case of electronic transactions, including transactions performed in terms of 7.2, the following will apply:

8.2.1 you must present a POS terminal generated receipt for payment by means of an interchange of electronic data between the POS terminal and us. We will determine the frequency of the interchange of data, but you must make sure that you deposit all POS terminal generated receipts electronically within 3 (three) business days of the transaction date;if, for whatever reason, this interchange of data cannot take place, we will be entitled to get the necessary information from your copy of the POS terminal generated receipt and then to process the affected transaction manually;**you agree to notify us immediately of any mistakes in the data that is interchanged because of a defective POS terminal or communication link. In such a case, our liability will be limited to correcting the mistakes in the data;**

8.2.3 we will credit or debit your nominated bank account or any other account held by you with the total nett amount of all duly completed and valid POS terminal generated receipts and valid credit vouchers presented for payment; and

8.2.4 **every time we credit your nominated bank account we retain the right to cancel the payment we have made on any invalid sales vouchers or electronic transactions by debiting your nominated bank account or any of your other accounts with the amount of the invalid sales voucher or invalid electronic transaction.**

9 **Warranties**

9.1 **When you present a transaction for payment to us, you warrant that:**

9.1.1 **the information on the sales voucher or electronic transaction are true;**

9.1.2 **you delivered the goods and/or supplied services to the Cardholder at your normal cash price with no additional charges;**

9.1.3 **the transaction between you and the cardholder is legal;**

9.1.4 **you have complied with all the terms of this Agreement;**

9.1.5 **you must prove to our satisfaction that the cardholder authorised us to debit his/her account; and**

9.1.6 **you agree to indemnify us against any claim by the Cardholder regarding goods and/or services which you supplied to the Cardholder.**

10 **Invalid transactions**

10.1 Any sales voucher or POS terminal generated receipt will be invalid if one or more of the following occur:

10.1.1 the transaction date is before the start date indicated on the card or the card has expired and you did not get authorisation;

10.1.2 the transaction does not comply with the warranties in 9;

10.1.3 the value of the transaction is more than the authorised floor limit and you did not get our authorisation in advance;

10.1.4 the cardholder has tendered a card but no signature appears on the sales voucher or POS terminal generated receipt;

10.1.5 the cardholder has tendered a card but the signature which appears does not correspond with the signature on the card;

10.1.6 you accepted a chip card, but you processed the transaction using the magnetic stripe data or by making a manual card detail entry;

10.1.7 the sales voucher or POS terminal generated receipt is different from the copy you gave to the cardholder;

10.1.8 the sales voucher or POS terminal generated receipt is materially incomplete;

10.1.9 you accepted a mutilated, defaced, blank or illegible card;

10.1.10 you did not present the sales voucher or the electronic transaction within the agreed period;

10.1.11 the sales voucher or POS terminal generated receipt was not processed on an imprinter or POS terminal which we supplied or approved;

10.1.12 the cardholder has returned the goods he/she paid for to you because he/she is entitled to do so in terms of applicable law or an Agreement with you;

10.1.13 the transaction represents collection of a dishonoured cheque (i.e. a cheque which was returned unpaid);

10.1.14 you recorded a card transaction relating to petroleum products on a workshop voucher; and

10.1.15 you recorded a card transaction relating to the provision of maintenance, repair or other services and/or the sales of spares and accessories, on a petrol voucher.

10.2 We may choose to treat any of the above transactions as valid but without prejudice to our right in any later transaction to treat any similar transactions as invalid.

10.3 **If there is an invalid transaction as set out above, we have the right to charge each such invalid transaction back to you.**

11 **Refunds**

11.1 If a cardholder returns the goods to you and you refund the cardholder, you may only use a credit voucher that we have approved by us, or you must complete a POS terminal refund transaction.

11.2 You may not make a cash refund to a credit cardholder.

11.3 You must get the signature of the cardholder on the credit voucher or POS terminal generated receipt.

11.4 You must give a copy of the credit voucher or POS terminal generated receipt to the cardholder.

11.5 You must present all credit vouchers to us or post the value of the POS terminal generated receipt within 3 (three) business days from the date of a transaction.

11.6 You must retain copies of all credit vouchers and POS terminal generated receipts for a period of at least 180 (one hundred and eighty) days.

12 **Point of Sale Equipment**

12.1 Any reference to a POS terminal will include the "**accessories**" for that terminal set out in the equipment and rental schedule.

12.2 If we supply you with a POS terminal, you must pay us the fee as set out in the equipment and rental schedule. We may change the amount of this fee.

12.3 We will at all times own all POS terminals which we supply to you in terms of this agreement. If you rent the premises from which you are trading and at which you keep any of our POS terminals, you must inform your landlord in writing that we are the owner of the POS terminals.

12.4 **You will be liable to us if you damage or lose a POS terminal. You must notify us immediately by fax or email if you damage or lose any of our POS terminals.**

12.5 You must insure all of our POS terminals which we supply to you.

12.6 When this Agreement ends (for whatever reason), you must immediately return all our POS terminals which we supplied to you.

12.7 You may under no circumstances move a POS terminal from one sales outlet to another without our written permission in advance.

12.8 You must provide and maintain all electrical and or other connections necessary for the operation of the POS terminals in accordance with our requirements.

12.10 **Concerning the merchant supervisor function:**

12.10.1 **You must make sure that only your employees whom you have authorised to do so, will perform the merchant supervisor function.**

12.10.2 **You will be responsible for all transactions and for any error and/or fraud committed by any of your employees or anyone who uses the merchant supervisor function.**

13 **Debiting of your account**

13.1 You authorise us to debit your nominated bank account number 1541947922 held at the 470010 branch of Capitec Bank Limited. If the debit order for the fees is rejected, you agree and acknowledge that the payment of these fees will be dealt with on net settlement basis. You agree to notify us immediately in writing if any of these bank account details change.

13.1.1 the value of reversals of invalid sales vouchers or invalid POS terminal generated receipts;

13.1.2 the amount of the merchant service fee for all card payments;

13.1.3 a rental fee will be charged for a full month, irrespective of the day on which it is installed;

13.1.4 any refund due to a cardholder which you do not pay;

13.1.5 any overpayments due to clerical or electronic errors made by either party;

13.1.6 the value of transactions which a cardholder disputes with us;

13.1.7 the total value of sales vouchers and/or batches of electronic transactions lost because you did not provide us with valid merchant's copies within 14 (fourteen) business days of being requested to do so [on the understanding that you must retain copies of all credit vouchers and POS terminal generated receipts for a period of at least 180 (one hundred and eighty) days]; and

13.1.8 interest on any amount which is due and not paid, calculated using our prime overdraft rate. Interest is calculated from the date on which you should have paid us to the date on which you actually pay us the overdue amount.

13.2 You are responsible for all banking costs in respect of all amounts payable in terms of this clause.

13.3 You will pay the administration fee for each payment due by you to us which is returned unpaid by your bank.

13.4 You will pay the reasonable administration fee as agreed between us at the time for clerical errors associated with incorrectly presented sales vouchers and as may be advised from time to time on your statements.

13.5 You will pay the call-out fee as agreed between us at the time should we find out that your POS terminal is malfunctioning because you or any of your employees maltreated, neglected or operated this POS terminal badly.

13.6 The amounts payable in terms of this clause are subject to exchange rate variations, where applicable.

13.7 VAT will be payable on all fees referred to in this clause, where applicable.

14 **Chargeback**

14.1 In some circumstances the Card Issuer will have the right under the Scheme Rules to refuse to settle a transaction or to seek a reimbursement of a transaction which has already been settled.

a) if we have not yet paid you with respect to that transaction, we will not be required to pay you with respect to that transaction; or

b) if we have already paid you with respect to that transaction, you will have to pay it back to us.

This is referred to as "**Chargeback**". This is the case even where the transaction has been authorised and where you send us information about a transaction which is not a valid transaction but which has been processed by us as a transaction. If you have to pay us back for a Chargeback such amount will be a debt from you to us which you will owe immediately and you agree that we are entitled to deduct the relevant amount from your bank account where that account is held with us.

14.2 Chargeback will apply, (but will not be limited to):

a) if you do not give us evidence that the cardholder has authorised the transaction;

b) if a transaction or the way in which it was carried out has breached this Agreement or if the transaction data or the way in which it has been sent to us has breached this Agreement;

c) if we receive a claim to do with the transaction, or any goods or services provided by you. This claim could be from the Cardholder or the Card Issuer and includes (without limitation) claims in respect of faulty goods or services, non-receipt of goods or services, goods/services not as described and cancelled transactions;

d) in face to face transactions, if you have to manually key enter a transaction into your terminal because the Card cannot be read and you do not obtain an imprint of the Card on a verification (or sales) voucher, together with the signature of the Cardholder;

e) if the Cardholder denies authorising a card not present transaction;

f) if a transaction was not genuine or for an Illegal transaction;

g) if a transaction was for a payment by a cardholder to another person or for purchase with cashback given to a cardholder by another person other than you;

h) if authorisation is not obtained as required by this Agreement;

i) if the transaction does not in some other way constitute a valid transaction;

j) if the transaction involves the use of the card by a person other than the cardholder; or

k) if you are adjudged to be an Excessive Chargeback Merchant and/or an Excessive Fraud Merchant by any card scheme;

l) where clause 14.5 (c) applies.

14.3 Clause 14.1 does not apply and we are not entitled to charge a card payment back to you in the circumstances set out in:

(a) clause 14.2(a) in relation to any single contactless transaction which is equal to or less than the contactless limit; or (b) clauses 14.2(a) or 14.2(j) in relation to a face to face transaction where you are chip and pin compliant unless you are an Excessive Chargeback Merchant or Excessive Fraud Merchant.

14.4 If we do not pay you or you have to pay us back with respect to any transaction, in each case as permitted in this Agreement, we will not have any responsibility to deal with the cardholder ourselves or to try to obtain payment from them, the card issuer. You must not send us transaction data for the transaction again unless we agree that you can.

14.5 **Excessive Chargeback and Excessive Fraud Programmes**

a) If we are informed by any card scheme that you have become, or are becoming, an excessive chargeback merchant by exceeding, or approaching, specific chargeback thresholds for card payments as stipulated by the card schemes (referred to as an "**Excessive Chargeback Merchant**") or an excessive fraud merchant by exceeding, or approaching, specific fraudulent transaction thresholds for card payments as stipulated by the card schemes (referred to as an "**Excessive Fraud Merchant**"), we may request and you will provide within 5 (five) business days detailed reasons for the number of individual Chargebacks or incidents of fraud, as applicable, with respect to card payments and the measures you are taking to reduce the number of individual Chargebacks or incidents of fraud, as applicable.

b) If you are deemed to be an Excessive Chargeback Merchant or an Excessive Fraud Merchant, we may give you instructions on how to reduce the level of Chargebacks or fraud incidents, as applicable and you will comply with such instructions and within the timescales stipulated by us.

c) For the purposes of this clause 14.5 if you, in your sole discretion, issue or have issued any credit to a cardholder to avoid being deemed an Excessive Chargeback Merchant then we may treat such credit as a Chargeback.

15 Fraudulent transactions

15.1 In this clause the term "fraudulent transactions" means any transaction which, in terms of the common law or statute, would constitute fraud (irrespective of whether we provide you with an authorisation code number or not).

15.2 **We are entitled to debit any of your bank accounts at any time with the value of all fraudulent transactions which you deposit or post electronically.**

15.3 We reserve the right to end this Agreement immediately if you perpetrate fraud or we reasonably suspect that you or your employee have perpetrated fraud.

16 Disclosure of information

16.1 **You must tell us in writing and in advance if for whatever reason:**

16.1.1 **the owners of your business (indicated on the application form) change;**

16.1.2 **the classification of your business changes; or**

16.1.3 **there is any other material change in the nature of your business. If the nature of your business changes to include providing gaming, gambling or pornography or related infrastructure or services, this change will be regarded as a material change for the purposes of this agreement.**

16.2 You must inform us of any previous merchant agreements you concluded with other financial institutions including any restrictive conditions contained in those agreements and the reasons why you ended those agreements. This is so that we can properly evaluate, assess and approve your application. You consent to and authorise us to investigate your previous merchant agreements.

16.3 If at the time of signing this Merchant Agreement you are not a member of an organisation where you qualify for a reduced merchant service fee and you subsequently join an organisation at a later stage, the onus is on you to advise us accordingly. Your failure to advise us will not oblige us to refund any reduced merchant service fee.

16.4 You warrant that you will comply with all applicable legislation regarding the processing of data in respect of us and the cardholder. In particular, you may not disclose, sell, purchase, provide or exchange a cardholder's name or account number information in whatever form, including the form of imprinted sales vouchers, carbon copies of imprinted sales vouchers, mailing lists, tapes, or other media obtained by reason of a card transaction, to third parties, except as required by law.

16.5 You must keep all systems and media containing account, cardholder or transaction information (physical or electronic, including but not limited to account number, card imprints, signatures of cardholders) in a secure manner. This is to prevent access by or disclosure to anyone other than your authorised personnel and us. You must destroy, in a manner that will render the data unreadable, all media that in your opinion, you need no longer store.

16.6 You consent to us disclosing information about you to any Card Scheme or other financial institution for use in any fraud prevention schemes they may set-up, including the National Merchant Alert Service, the Merchant Performance Reporting Service and the Member Alert to Control High Risk (Merchant) System. This is to assist us and these financial institutions to identify merchants who are or may become involved in, amongst other things, fraud or suspected fraud, and in our and their efforts to prevent fraud.

16.7 **If you do not comply with this clause, we will immediately suspend your access to the POS service, report you to the relevant authorities, and end this agreement.**

17 Inspections

17.1 You will permit us, or our agent, reasonable access to your business premises to:

17.1.1 conduct physical inspections to ensure that you are complying with the terms and conditions of this Agreement;

17.1.2 investigate any cardholder claims that you are not complying with the terms of this Agreement; and

17.1.3 investigate instances in which we reasonably suspect that you are involved in fraud.

18 Monthly statements

It is your responsibility to check all the statements we send you. You must let us know in writing within 30 (thirty) days of the date of the bank statement if there is something on a statement that you do not agree with. If you do not let us know within this time, we are entitled to treat the bank statement as correct.

19 Promoting Payment Acceptance

19.1 You must display the branding so that the public is aware that you are willing to accept the card as a method of payment for your goods and services.

19.2 You may not in any way state, imply or create the impression that we, or any Card Scheme, endorse or guarantee any of your goods or services.

20 **Debit cards and med-cards**

20.1 The provisions of this 19 apply to debit cards and med-cards, despite any other provisions to the contrary in this Agreement.

20.2 You agree to accept for payment each valid debit card and med-card that a cardholder presents to you, on condition that you obtain express authorisation in advance from our card division using the electronic authorisation function. A zero floor limit will apply to all card transactions.

20.3 All debit card and med-card transactions are online electronic transactions and if for any reason, the POS terminal is not functioning, you cannot process any transactions. If you use any other device to process transactions, we will have the chargeback rights as set out in this agreement. All debit card and med-card transactions will be swipe-PIN based transactions.

21 **Mail/telephone order transactions**

You may not process any transaction if you have to rely only on the card number and details which the cardholder gives you without the cardholder actually presenting the card to you, unless you get our written permission in advance to do so.

22 **Default under this agreement**

22.1 We may exercise our rights, which include demanding immediate payment of overdue amounts due to us under this Agreement or ending this agreement, as may be permissible in law, without prejudice to any of our other rights, if any of the following events occur:

22.1.1 you do not comply with a material provision of this Agreement and you do not remedy this breach within 20 (twenty) business days of receiving written notice from us asking you to do so;

22.1.2 any representation or warranty made in connection with this Agreement or any other documents supplied by you to us in connection with this Agreement is materially incorrect or false;

22.1.3 you:

22.1.3.1 being an individual:

22.1.3.1.1 publish notice of the voluntary surrender of your estate or die;

22.1.3.1.2 are placed under administration or commit an act of insolvency as defined in the Insolvency Act 24 of 1936;

22.1.3.1.3 have any application or other proceedings brought against or in respect of you, where a third party seeks to have you sequestrated or placed under curatorship, in any event whether in a manner which is provisional or final, voluntary or compulsory;

22.1.3.2 being a juristic entity:

22.1.3.2.1 are wound up, liquidated, dissolved, deregistered, in a manner which is provisional or final, voluntary or compulsory, or you pass or it passes a resolution providing for any such event;

22.1.3.2.2 are treated as being unable to pay your debts;

22.1.3.2.3 resolve that you voluntarily begin business rescue proceedings or have any business rescue proceedings commenced against you as contemplated in section 132(1) of the Companies Act 71 of 2008;

22.1.3.2.4 judgment of a competent court against you for the attachment of assets or for payment of any amount is not satisfied within 7 (seven) days after the date on which it is issued; or

22.1.3.2.5 you compromise or attempt to compromise with your creditors or defer payment of debts owing by you to your creditors.

22.2 Should we breach any material provision of this Agreement and not remedy this breach within 20 (twenty) business days after receiving written notice from you requiring us to do so, then you will be entitled to cancel this Agreement with immediate effect or to claim specific performance of all of our obligations which are due at that time, in either event without prejudice to your right to claim damages and other rights in law.

23 **Duration**

23.1 This Agreement will start on the signature date and will remain in force for 2 (two) years ("The Initial Period") (unless terminated for breach or default). Either party may end this Agreement after The Initial Period by giving the other party at least 90 (ninety) days' advance written notice.

23.2 If you are not a juristic person and this is a fixed-term Agreement for purposes of section 14 of the CPA, you may end this Agreement at any time during by giving us 20 (twenty) business days' notice in writing to that effect. If this happens, you will still be liable to us for any amounts which you owe to us in terms of this Agreement up to the date on which this Agreement ends. We may impose a reasonable cancellation penalty with respect to the POS service and your use of any POS terminals.

23.3 We may change any provision of this Agreement on 30 (thirty) days' advance written notice to you. If you continue to use the POS terminal after receiving our notice, you show that you agree to this change. If you do not agree to the change, you must give us 30 (thirty) days' written notice in advance to the effect that you are ending this agreement. If this happens, you remain liable to us for any amounts which you owe to us in terms of this Agreement up to the date on which this Agreement ends. We may impose a reasonable cancellation penalty with respect to the POS service and your use of the POS terminal.

24 **Return and refund policy**

Our refund policy applies to all goods that we supply.

25 **Delivery of goods, start of services and delays affecting services**

25.1 We will be able to start with the services we must provide to you under this Agreement once: 25.1.1 we have approved your application; and

25.1.2 the parties have complied with any further conditions imposed by law.

25.2 You may choose to accept delivery of goods, for example, a POS terminal, at one of our branches or at your chosen address. You may also specify the date and time of delivery. If you need to use the goods to access our services, we will only be able to start the services after you have accepted delivery of the goods.

25.3 If we are unable to provide the services or the goods, we will inform you immediately and refund any payment made within 30 (thirty) days of this notice, on condition that you acknowledge that we may be unable to provide you with any services if power outages occur which affect our facilities, electronic terminals, service providers or supporting networks and we give you notice of unavoidable delays in the performance of the services if this occurs.

25.4 Unless we acted with gross negligence or fraudulent intent, we will not be liable for any damage arising from:
25.4.1 a network breakdown;
25.4.2 a system failure;
25.4.3 equipment malfunction; and
25.4.4 the destruction of or damage to facilities caused by power failures or similar occurrences.
25.5 Loss or damage caused by events beyond our control.
25.6 The fact that you or the cardholder is not able to gain access to the POS terminal or to utilise it.

26 Your chosen address

26.1 You choose the physical address and email address in South Africa on the first page of this Agreement as the address and email address at which you agree to accept any notices we send to you (including letters reminding you of any payments under this Agreement you may have missed), where we may serve any legal process and may execute on any judgment we obtain against you and for all other purposes relating to this agreement. (This address is known in law as your *domicilium citandi et executandi*.)

26.2 If you want to change this address or email address, you must send us a notice in writing by registered post. This notice must:

26.2.1 tell us that you are changing your address or email address; and

26.2.2 set out the new address or email address which you agree will be used for this purpose. This new address must be a physical address in the Republic of South Africa.

26.3 If we send a notice to you:

26.3.1 by prepaid registered post to your chosen address, we will presume that you received it 7 (seven) days after we posted it;

26.3.2 by hand to your chosen address, we are entitled to presume that you received it on the date on which we delivered it; and

26.3.3 by email at the email address which is part of your chosen address, we will treat it as if you have received it at the time of the transmission.

26.4 When we presume that you received a notice by a certain date, this means we do not have to prove that you did receive it then. If you claim that you did not receive the notice by that date then you will have to prove it.

26.5 If you have actually received a written notice or communication from us, even if it was not sent to or delivered at your chosen address, postal address or email address, it will still be a valid notice.

26.6 If you change your address but do not notify us, you agree that we have the right to send notices to you and serve legal processes at your last address known to us or any other address you have given us proper notice of.

27 General

27.1 This Agreement is only valid and legally binding if it is in writing and signed by or on behalf of all the parties. Unless this Agreement provides otherwise, to be valid, all changes to this Agreement must be in writing and signed by all parties.

27.2 We do not lose any of our rights under this Agreement if we do not immediately and in every instance insist on them. You may not raise it as a defence if we have a right that we did not enforce at the relevant time. For example, if we allow you extra time to pay the fees you owe us in 1 (one) month, it does not mean we have allowed you extra time to pay these fees in the next or any other month.

27.3 You may not transfer any of your rights or obligations under this Agreement to anyone else without our prior written permission.

27.4 We may set off any amount which we have to pay you, against any amount which you have to pay to us in respect of any account which you hold with us, as may be permissible in law. You must immediately pay to us any amount owing by you to us after set-off.

27.5 We may consolidate all accounts which you hold with us, as may be permissible in law. No partial consolidation will prevent us from exercising our rights in respect of any accounts or amounts which we did not include in this consolidation.

27.6 Nothing in this Agreement may be interpreted to make you our partner or agent. Neither party may do anything or allow anything to be done that might cause anyone to reasonably believe that we are partners or agents of each other.

27.7 The parties might not be present at the same time or place to sign this agreement. For this reason, different versions of the same Agreement may be signed by the parties. Together the signed versions will make up the original Agreement between the parties.

27.8 When you sign this agreement, you confirm that you have read and understood all the terms and conditions of this agreement.

29 Your financial status

29.1 By signing this Agreement you confirm that:

29.1.1 you have checked the information we have about your personal, financial and account details and you agree that we may verify this information;

29.1.2 the information we have about your personal, financial and account details is correct;

29.1.3 you have not applied for and no order has been given against you for sequestration, liquidation;

29.1.4 you have not entered into a compromise with any of your creditors or attempted to do so or defer payment of debts owing by you;

29.1.5 no business rescue proceedings have begun in relation to your business, as contemplated in the Companies Act 71 of 2008; and

29.1.6 you understand that if any of these statements are not true, it may prevent you from exercising some or all of your rights.

30 Separation of Clauses

30.1 The parties acknowledge that each clause of this Agreement is separate. If any clause of this Agreement is or becomes illegal, invalid or unenforceable for any reason, it must be treated as if it had not been included in this agreement. This does not:

30.1.1 make the rest of the Agreement illegal, invalid or unenforceable; and

30.1.2 affect the legality, validity or enforceability of any other clause or this Agreement as a whole.

31 Governing law and jurisdiction

31.1 This Agreement is in all respects governed by the laws of the Republic of South Africa.

31.2 You agree that we may bring legal proceedings against you relating to this Agreement in any Magistrate's Court that has the authority to hear and decide on the case. You agree to the jurisdiction of the Magistrate's Court even if the amount we claim from you is more than the Magistrate's Court limit. This does not prevent us from bringing legal proceedings in a High Court that has jurisdiction.

32 **Entire Agreement**

This Agreement is the only record of the Agreement between the parties in regard to the subject matter of this agreement. The use of walletdoc's quick response code and e-commerce facilities is the subject of a separate agreement. Unless a court holds otherwise, no party is legally obliged to comply with any term, condition or undertaking, not recorded in this agreement and this Agreement replaces any arrangement or understanding held by the parties before this Agreement was signed.

Signed at _____ on _____

Witnesses

1 _____

2 _____ _____

On behalf of walletdoc

Signed at _____ on 20/02/2026

Witnesses

1 _____

2 _____ _____

On your behalf, who warrants that he/she is authorised

Schedule A
to Merchant Agreement

Schedule of services

Tick (✓) the applicable box(es)

MasterCard credit cards	✓
MasterCard debit cards	✓
MasterCard Maestro	✓
MasterCard pre-paid	✓
MasterCard other (specify)	✓
Visa credit cards	✓
Electron (Visa debit cards)	✓
Visa other (specify)	✓
Union Pay International	
American Express cards	
Diners Club cards	
Buy-aid cards	
Med-cards	
Garage cards and Petro cards	

This schedule forms part of the entire Agreement and will serve as a summary of the merchant's intention of cards to be accepted at all the merchant's outlets.

NB: The merchant and witnesses must initial each schedule.

Schedule B

to Merchant Agreement

Schedule of merchant service fee exclusive of VAT.

Complete the relevant box(es) to correspond with "Schedule A"

Facilities	**Point of sale transactions**	
	Fuel	**Credit cards/ Debit cards**
	Fixed % service fees	**Fixed % service fee**
MasterCard credit cards	**N/A**	N/A
MasterCard debit cards	**N/A**	N/A
MasterCard Maestro	**N/A**	N/A
MasterCard pre-paid	**N/A**	N/A
MasterCard other (specify)	**N/A**	N/A
Visa credit cards	**N/A**	N/A
Electron (Visa debit cards)	**N/A**	N/A
Visa other (specify)	**N/A**	N/A
American Express cards	**N/A**	**N/A**
Union Pay International	**N/A**	**N/A**
Diners Club cards	**N/A**	**N/A**
Buy-aid cards	**N/A**	**N/A**
Med-cards	**N/A**	**N/A**
Garage cards and Petro cards	**N/A**	**N/A**
International Cards		

This schedule forms part of the entire Agreement and will serve as a summary of the merchant's intention of cards to be accepted at all the merchant's outlets.

NB: The merchant and witnesses must initial each schedule.

Schedule C
to Merchant Agreement

Schedule of floor limits

Please complete the relevant box(es) to correspond with "Schedule A"

Facilities	Manual imprinter transactions			Point of sale transactions	
	All transactions	Fuel	Fuel	Ordinary cards	Gold cards
MasterCard credit cards	R0.00	R0.00	R0.00	R0.00	R0.00
MasterCard debit cards	R0.00	R0.00	R0.00	R0.00	R0.00
MasterCard Maestro	R0.00	R0.00	R0.00	R0.00	R0.00
MasterCard pre-paid	R0.00	R0.00	R0.00	R0.00	R0.00
MasterCard other (specify)	R0.00	R0.00	R0.00	R0.00	R0.00
Visa credit cards	R0.00	R0.00	R0.00	R0.00	R0.00
Electron (Visa debit cards)	R0.00	R0.00	R0.00	R0.00	R0.00
Visa other (specify)	R0.00	R0.00	R0.00	R0.00	R0.00
**American Express cards	R0.00	R0.00	R0.00	R0.00	R0.00
Union Pay International	N/A	N/A	N/A	N/A	N/A
**Diners Club cards	R0.00	R0.00	R0.00	R0.00	R0.00
**Buy-aid cards	R0.00	R0.00	R0.00	R0.00	R0.00
Med-cards	R0.00	R0.00	R0.00	R0.00	R0.00
Garage cards and Petro cards	R0.00	R0.00	R0.00	R0.00	R0.00
*Mail orders	R0.00	R0.00	R0.00	R0.00	R0.00

*Subject to clause 21 of the agreement.
**To be negotiated with the card issuers respectively.

This schedule forms part of the total Agreement and will serve as a summary of the merchant's intention of cards to be accepted at all the merchant's outlets.

NB: The merchant and witnesses must initial each schedule.

Schedule D

to Merchant Agreement

Schedule of rental exclusive of VAT.

Please complete the relevant box(es)

Equipment description	Quantity	Rental amount per unit per month
Bluebird MT280 Card Machine – SINGLE SIM Device		**R**
Bluebird MT280 Card Machine – DUAL SIM Device		**R**
Verifone Magic M4 WIFI		**R**
		R
		R
		R

This schedule forms part of the total Agreement and will serve as a summary of the merchant's intention of cards to be accepted at all the merchant's outlets.

*Each terminal unit consists of a handset with screen, cord and cover, a base set and a power supply with cord, all of which must be returned to walletdoc on termination of the agreement.

**Each manual imprinter is supplied with a fitted merchant copper or aluminium plate, both of which must be returned to walletdoc on termination of the agreement.

***Annual escalations on terminal rental fees apply.

NB: The merchant and witnesses must initial each schedule.

Schedule E

to Merchant Agreement

Item	Merchant fee category	Rate (excl VAT)
1	Local Credit - CP - Both EMV compliant	
2	Local Credit - CP - Acquirer EMV compliant	
3	Local Credit - Issuer EMV compliant	
4	Local Credit - CNP/Manual/MOTO/Both 3D compliant/AMT	2.70%
5	Local Debit - CP - Both EMV compliant	
6	Local Debit - CP - Acquirer EMV compliant	
7	Local Debit - CP - Issuer EMV compliant	
8	Local Debit - CNP/Manual/MOTO/Both 3D compliant (authenticated transaction)/AMT	2.70%
9	Local Credit - CNP - Acquirer 3D compliant (authentication attempted)	2.70%
10	Local Credit - CNP - Issuer 3D compliant (Non-3D merchant and/or authentication not attempted)	2.70%
11	Local Debit - CNP - Acquirer 3D compliant (authentication attempted)	2.70%
12	Local Debit - CNP - Issuer 3D compliant (Non-3D merchant and/or authentication not attempted)	2.70%
13	VISA International - Normal	3.0%
14	VISA International - Downgraded	3.0%
15	MC International - Normal	3.0%
16	MC International - Downgraded	3.0%
17	Union Pay International	n/a

Note: A minimum monthly transaction charge of 0 _____ excluding VAT applies.

Source of Funds and Income for Branch Banking

Internal only

Section A: Client details (Compulsory)

Client code	
Client's full name	Cameron Falck (T/A Slip-A-Tip)
Client type	

Section B: New account or maintenance of existing account

Tick (✓) the relevant one:

☑	*New account	Complete section C and D
☐	*Maintenance of existing account	Complete section C

Source of Income ("**SoI**"): is generally obtained at a client level (or entity level if there are multiple entities belonging to the client grouping) and refers to the periodic credits to the client's account with some sort of regularity or expected regularity, from definite sources (such as a salary). Where a client does not have a transactional product/account, then the client's regular source of income should be captured.

Source of Funds ("**SoF**"): is generally focused on a product/account level and can include a specific activity/transaction concluded at a point in time during the course of the business relationship with the bank. Examples are policy pay-outs, Insurance pay-outs, inheritance, gifts, divorce settlement, sale of property etc. *it may well be that the Source of Funds ("**SoF**") for an account will also be the Source of Income ("**SoI**") e.g. salary/wages.*

Privacy notice

How we treat your personal information

We collect and process your personal information to enable us to provide you with products and services, among other things and we may share it with:

- the Absa Group, its service providers and other third parties to comply with our regulatory obligations;
- any party to whom we assign our rights under this Agreement or any of our agreements for products and services; and
- credit bureaus where credit products are applied for by you.

All the personal information we share is subject to our privacy and security requirements and we are responsible for ensuring that your personal information is processed lawfully and in a reasonable manner that does not infringe your privacy rights. We may make automated decisions based on your personal information and should you be unhappy with the outcome, please feel free to contact us. We will notify you if we intend using your personal data for other purposes.

We use your personal information to tell you about products or services that may interest you. We may contact you via SMS, email, telephone or post. If you do not wish to receive direct marketing communication, you can update your preferences via our website, banking app or at your nearest branch.

We will keep your personal information only for as long as the law requires us to. After this time, we will securely destroy or de-identify this information.

You have the right to ask us for access to your personal information and to instruct us to amend and/or delete any personal information or to object to us processing your personal information. You can also let us know if you want us to stop or to limit how we use your personal information.

If you do not agree with how we use your personal information, please lodge a complaint at actionline@absa.co.za

Please read these terms and conditions in conjunction with our detailed Privacy Statement which you can access on absa.co.za or at your nearest Absa branch.

Marketing consent

Electronic marketing consent

Let's stay in touch.

Would you like to hear about any exciting new products, upgrade opportunities or some fantastic offer from Absa Group?

Please contact me via:

- ☐ Email
- ☐ SMS
- ☐ Voice recording
- ☐ No, thanks

Section C: Select one of the following sources of income (Compulsory)

Individuals/Joint and Several/Partnership Participants

Client code	Source of Income (Select from list below)

Sole Trader

Client code	Source of Income (Select from list below)

Non-individual and Partnership

Client code	Source of Income (Select from list below)
	Trading Income - Services

Section D: Select one of the following sources of funds

Individuals/Joint and Several/Partnership Participants

Account number	Account type	Source of Funds (Select from list below)

Sole Trader

Account number	Account type	Source of Funds (Select from list below)

Non-individual and Partnership

Account number	Account type	Source of Funds (Select from list below)
		Trading Income - Services

Section E: General comments (if applicable)

Section F: Confirmation

- [x] I have determined the Source of Income for the client.
- [x] I have determined the Source of Funds for the product/account held by this client.

Employee/AB number

Full name of employee: Reneiloe Makhobotloane

Designation/Role

Date (dd/mm/ccyy): 20/02/2026

RENEILOE MAKHOBOTLOANE

Signature of employee

*New account - new to bank/transact client and existing client adding a new product.
*Maintenance on existing account - when updating any of the CIF trigger fields.

Physical Site Visit Conducted for Verification Purposes

Confidential

CSA Ref

CIF code

Account no(s)

Client ID number

or

Client passport number

Formal settlement

Informal settlement

1 I, Reneiloe Makhobotloane,

employee no confirm that I conducted a physical site visit on 20/02/2026

at the following address: 91 A Meyer Street, George, South Africa, 6529

2 I am satisfied that the above address is the residential/business address of Cameron Falck (T/A Slip-A-Tip)

3 I am also satisfied that the trading name of the above accountholder is Cameron Falck (T/A Slip-A-Tip)

is.

(delete if not applicable)

4 I consulted with Cameron Falck

at the above address and verified the address and/or trade name.

5 I have consulted with Cameron Falck

at the above address and confirm that the following information that was used to verify the address and/or trade name:

All is in order

REINEILOE MAKHOBOTLOANE

(Signature: Staff member)

(Signature: Client)

Tax Self-certification and Declaration Form - Entity

Confidential

Please note: *This form and relevant sections/parts need to be completed by all entities constituting clients of the Absa Group Limited group of companies.*

Tax Regulations were enacted requiring the collection of certain information about an accountholder's tax residency status. In certain circumstances there may be a requirement to share this information with relevant tax authorities.

Please complete, where applicable, the relevant sections below and provide any additional information as may be required.

If you have any questions about how to complete this form, please contact your tax adviser or local tax authority.

If your organisation or entity is resident in the United States or dual resident, you should also provide a completed, signed and dated IRS Form W-9.

Do not use this form if you are acting as an agent, nominee or conduit for the account of others or you are not considered to be the Beneficial Owner of the payments. Instead, you should complete the IRS Intermediary Self-Certification and Declaration Form (W8 – IMY) and submit with the appropriate self-certification(s) from the Beneficial Owner(s).

Part I: Accountholder's details

Full name of entity or organisation: Cameron Falck (T/A Slip-A-Tip)

Registration number: 9603175411083

Country of incorporation: South Africa

Registered physical address: 91 A Meyer Street, George, South Africa, 6529

Postal address:

Postal code:

Part II: Tax residency

I hereby certify that the entity or organisation identified above is a tax resident of: South Africa

a) The entity or organisation's Tax Identification Number ("**TIN**") or functional equivalent in its country of residence for tax purposes is:

If the organisation or entity is not tax resident in the country stated in (a) above, please tick (✓) box and detail your reason in the space provided below. ☐

or

b) The entity or organisation's country of residence for tax purposes does not issue TINs or a functional equivalent to its residents, or the entity or organisation is otherwise unable to procure a TIN or a functional equivalent from its country of residence [please tick (✓) box if relevant)]. ☐

If the entity or organisation is a tax resident in more than one jurisdiction, please complete the following section as appropriate:

Country:

TIN:

No TIN available for the following reason:

Part III: Entity type

Section A – For a Financial Institution (FI) to complete

If your organisation or entity is an FI, please complete (a) or (b) below as appropriate:

a) Participating FFI ☐ b) or Registered Deemed Compliant (including Reporting Model 1 FFI) ☐

Please provide your organisation's or entity's Global Intermediary Identification Number ("**GIIN**")

If you do not have a GIIN but you are sponsored by another entity which does, please provide your sponsor's GIIN above and state your sponsor's name:

c) If unable to provide a GIIN, please tick (✓) the reason why your organisation does not have a GIIN:

i) It is a Participating Financial Institution in an IGA Partner Jurisdiction and has not yet obtained a GIIN. ☐

ii) It is a Financial Institution that intends to apply for a GIIN but has not yet applied/has not yet received it. ☐

iii) It is an Exempt Beneficial Owner (i.e. an international organisation). ☐

iv) It is a Certified Deemed Compliant Financial Institution (i.e. a registered charity). ☐

v) It is an Owner Document Financial Institution. ☐

vi) It is a Non-participating Foreign Financial Institution. ☐

vii) Other (please state below). ☐

Section B – For a Non-Financial Institution (NFI) to complete

If your organisation is not a FI, please confirm your organisation's status below:

☑ Active NFFE ☐ Passive NFFE ☐ Direct reporting NFFE

If you are a direct reporting NFFE, please provide your GIIN or the GIIN of your sponsoring entity and the name of the sponsoring entity:

Name of sponsoring entity

GIIN

Please tick (✓) this box to confirm that the sponsoring entity has agreed with the entity identified above (that is not a non-participating FFI) to act as the sponsoring entity for this entity: ☐

For Passive NFFEs, please complete either individual forms for each controlling person or complete the table below.

Controlling Persons are defined as natural persons who exercise control over the entity or the shareholders of the entity based on local Anti-Money Laundering ("**AML**") requirements. In the case of a Trust this means:

- the settlor;
- the trustees;
- the protector (if any);
- the beneficiaries or class of beneficiaries; and
- any other natural person exercising ultimate effective control over the Trust.

In the case of a legal arrangement other than a Trust, it means persons in equivalent or similar positions.

Controlling Persons (Please continue on a separate sheet if necessary, signing, dating and attaching the sheet to this form.)

If the Controlling Person(s) are US Citizens they should additionally complete a W9 form.

Name	Address	Tax residence	TINS (Provide all)	Place (City/Town and country)	Date of birth (dd/mm/ccyy)

Part IV: Authorisation, declaration, declaration and signature

1 I authorise the recipient to provide, directly or indirectly, a copy of this form;

a) to any relevant tax authorities or any party mandated to audit or conduct a similar control of the Recipient for tax purposes and to disclose to such tax authorities or such party any additional information that the Recipient may have in its possession that is relevant to the entity's qualification for any benefits claimed on the basis of this form; and

b) information relating to the account(s) set out above, as required by law, to: (i) any person that has control, receipt, or custody of income to which this form relates; (ii) any person that can disburse or make payments of income to which this form relates; or (iii) any party authorised to audit or conduct a similar control of aforementioned persons for tax purposes.

2 I acknowledge and agree that information contained in this form and information regarding income paid or credited to or for the benefit of the account(s) set out above, may be reported to the tax authorities of the country in which such income arises and that those tax authorities may provide the information to the country or countries in which the entity is resident for tax purposes.

3 I agree that the information contained in this form and information (including information mentioned above) may be shared between Absa Group Limited entities to the extent required for tax reporting purposes.

4 I certify that the entity named is the Beneficial Owner of all the income to which this form relates.

5 I undertake to notify the Recipient of any change in circumstances that causes any certification on this form to become incorrect and to provide a suitably updated form within 30 (thirty) days of such change.

6 I declare that I have examined the information on this form and to the best of my knowledge and belief it is true, correct and complete.

7 I certify that I have the capacity to sign for the entity identified in Part I of this form.

Print name

Signature

Date (dd/mm/ccyy) 20/02/2026

Definitions and detailed requirements

Accountholder means the person listed or identified as the holder of a Financial Account by the Financial Institution that maintains the account. A person, other than a Financial Institution, holding a Financial Account for the benefit or account of another person as agent, custodian, nominee, signatory, investment adviser, or intermediary, is not treated as holding the account for purposes of this Annex and such other person is treated as holding the account. In the case of a Cash Value Insurance Contract or an Annuity Contract, the Accountholder is any person entitled to access the Cash Value or change the beneficiary of the contract. If no person can access the Cash Value or change the beneficiary, the Accountholder is any person named as the owner in the contract and any person with a vested entitlement to payment under the terms of the contract. Upon the maturity of a Cash Value Insurance contract or an Annuity Contract, each person entitled to receive a payment under the contract is treated as an Accountholder.

Active NFFE means any NFFE that meets any of the following criteria: Less than 50% of the NFFE's gross income for the preceding calendar year or other appropriate reporting period is passive income and less than 50% of the assets held by the NFFE during the preceding calendar year or other appropriate reporting period are assets that produce or are held for the production of passive income.

Annuity Contract means a contract under which the issuer agrees to make payments for a period of time determined in whole or in part by reference to the life expectancy of one or more individuals. The term also includes a contract that is considered to be an Annuity Contract in accordance with the law, regulation, or practice of the jurisdiction in which the contract was issued and under which the issuer agrees to make payments for a term of years.

Beneficial Owner for payments other than those for which a reduced rate of, or exemption from, withholding is claimed under an income tax treaty, the Beneficial Owner of income is generally the person who is required under US tax principles to include the payment in gross income on a tax return. A person is not a Beneficial Owner of income, however, to the extent that person is receiving the income as a nominee, agent, or custodian, or to the extent the person is a conduit whose participation in a transaction is disregarded. In the case of amounts paid that do not constitute income, Beneficial Ownership is determined as if the payment were income.

Foreign partnerships, foreign simple trusts and foreign grantor trusts are not the Beneficial Owners of income paid to the partnership or trust. The Beneficial Owners of income paid to a foreign partnership are generally the partners in the partnership, provided that the partner is not itself a partnership, foreign simple or grantor trust, nominee or other agent. The Beneficial Owners of income paid to a foreign simple trust [that is, a foreign trust that is described in section 651(a)] are generally the beneficiaries of the trust, if the beneficiary is not a foreign partnership, foreign simple or grantor trust, nominee, or other agent. The Beneficial Owners of income paid to a foreign grantor trust (that is, a foreign trust to the extent that all or a portion of the income of the trust is treated as owned by the grantor or another person under sections 671 through 679) are the persons treated as the owners of the trust. The Beneficial Owners of income paid to a foreign complex trust (that is, a foreign trust that is not a foreign simple trust or foreign grantor trust) is the trust itself.

For purposes of section 1446, the same Beneficial Owner rules apply, except that under section 1446 a foreign simple trust rather than the beneficiary provides the form to the partnership.

The Beneficial Owner of income paid to a foreign estate is the estate itself.

Broad Participation Retirement Fund: A fund established to provide retirement, disability, or death benefits, or any combination thereof, to beneficiaries that are current or former employees (or persons designated by such employees) of one or more employers in consideration for services rendered, provided that the fund:

1. Does not have a single beneficiary with a right to more than 5% of the fund's assets.
2. Is subject to government regulation and provides annual information reporting about its beneficiaries to the relevant tax authorities.
3. Satisfies at least one of the following requirements:
   a) The fund is generally exempt from tax on investment income under the laws of a jurisdiction due to its status as a retirement or pension plan.
   b) The fund receives at least 50% of its total contributions (other than certain transfers) from the sponsoring employers.
   c) Distributions or withdrawals from the fund are allowed only upon the occurrence of specified events related to retirement, disability death (except for certain rollover distributions), or penalties apply to distributions or withdrawals made before such specified events.
   d) Contributions (other than certain permitted make-up contributions) by employees to the fund are limited by reference to earned income of the employee or may not exceed $50 000 annually for account aggregation and currency translation.

Cash Value means the greater of (i) the amount that the policyholder is entitled to receive upon surrender or termination of the contract (determined without reduction for any surrender charge or policy loan) and (ii) the amount the policyholder can borrow under or with regard to the contract. Notwithstanding the foregoing, the term "**Cash Value**" does not include an amount payable under an Insurance Contract:

1. solely by reason of the death of an individual insured under a life insurance contract, including a refund of a previously paid premium provided such refund is a Limited Risk Refund as the term is understood in the Commentaries on the CRS;
2. a personal injury or sickness benefit or other benefit providing indemnification of an economic loss incurred upon the occurrence of the event insured against;
3. a refund to the policyholder of a previously paid premium under an Insurance Contract (other than under a life insurance contract) due to policy cancellation or termination, decrease in risk exposure during the effective period of the Insurance Contract, or arising from a redetermination of the premium due to correction of posting or other similar error with respect to the premium of the contract;
4. as a policyholder dividend (other than a termination dividend) provided that the dividend relates to an Insurance Contract under which the only benefits payable are described in subparagraph (2) above; or
5. as a return of an advance premium or premium deposit for an Insurance contract for which the premium is payable at least annually if the amount of the advance premium or premiums deposit does not exceed the next annual premium that will be payable under the contract.

Cash Value Insurance Contract means an Insurance Contract (other than an indemnity reinsurance contract between two insurance companies) that has a Cash Value.

Central Bank: An institution that is by law or government sanction the principal authority, other than the government of the jurisdiction itself, issuing instruments intended to circulate as currency. Such an institution may include an instrumentality that is separate from the government of the jurisdiction, whether or not owned in whole or in part by the jurisdiction.

Controlling Persons means the natural persons who exercise control over an Entity. In the case of a trust, such term means the settlor, the trustees, the protector (if any), the beneficiaries or class of beneficiaries and any other natural person exercising ultimate effective control over the trust and in the case of a legal arrangement other than a trust, such term means persons in equivalent or similar positions. The term Controlling Persons shall be interpreted in a manner consistent with the Financial Action Task Force Recommendations.

Custodial Institution means any Entity that holds, as a substantial portion of its business, financial assets for the account of others. An entity holds financial assets for the account of others as a substantial portion of its business if the entity's gross income attributable to the holding of financial assets and related financial services equals or exceeds 20% of the entity's gross income during the shorter of: (i) the 3 (three) year period that ends on the last day of February of the prior tax year; or (ii) the period during which the entity has been in existence.

Depository Institution means any Entity that accepts deposits in the ordinary course of a banking or similar business.

Deemed-compliant FFI: Under section 1471(b)(2), certain FFIs are deemed to comply with the regulations under chapter 4 without the need to enter into an FFI agreement with the IRS. However, certain Deemed-compliant FFIs are required to register with the IRS and obtain a GIIN. These FFIs are referred to as **Registered Deemed-compliant FFIs**. See Regulations section 1.1471-5(f)(1).

Direct Reporting NFFE means the entity is not a financial institution; it elects to report information about its direct or indirect substantial US owners to the IRS. It registers with the IRS as a Direct Reporting NFFE and meets requirements defined by the IRS.

Exempt Collective Investment Vehicle means an Investment Entity that is regulated as a collective investment vehicle, provided that all of the interests in the collective investment vehicle are held by or through one or more Exempt Entities or individuals or Entities that are not Reportable Persons.

An Investment Entity that is regulated as a collective investment vehicle does not fail to qualify under subparagraph B(9) as an Exempt Collective Investment Vehicle, solely because the collective investment vehicle has issued physical shares in bearer form, provided that:

a) The collective investment vehicle has not issued and does not issue, any physical shares in bearer form after 29 February 2016.

b) The collective investment vehicle retires all such shares upon surrender.

c) The collective investment vehicle performs the due diligence procedures and reports any information required to be reported with respect to any such shares when such shares are presented for redemption or other payment.

d) The collective investment vehicle has in place policies and procedures to ensure that such shares are redeemed or immobilised as soon as possible and in any event prior to 1 March 2018.

Financial Institution means a Custodial Institution, a Depository Institution, an Investment Entity, or a Specified Insurance Company.

Foreign Financial Institution (FFI): A Foreign Financial Institution (FFI) means a foreign entity that is a financial institution.

Fund contemplated in section 10(1)(d)(i) or (ii) fund (e.g. pension fund) means a fund contemplated in section 10 (1)(d)(i) or (ii) of the (South African) Income Tax Act 58 of 1962.

Governmental Entity: The government of a jurisdiction, any political subdivision of a jurisdiction (which, for the avoidance of doubt, includes a state, province, county, or municipality), or any wholly owned agency or instrumentality of a jurisdiction or any one or more of the foregoing (each, a "**Governmental Entity**"). This category is comprised of the integral parts, controlled entities and political subdivisions of a jurisdiction.

1 An integral part of a jurisdiction means any person, organisation, agency, bureau, fund, instrumentality, or other body, however designated, that constitutes a governing authority of a jurisdiction. The net earnings of the governing authority must be credited to its own account or to other accounts of the jurisdiction, with no portion inuring to the benefit of any private person. An integral part does not include any individual who is a sovereign, official, or administrator acting in a private or personal capacity.

2 A controlled entity means an Entity that is separate in form from the jurisdiction or that otherwise constitutes a separate juridical entity, provided that:

   a) The Entity is wholly owned and controlled by one or more Governmental Entities directly or through one or more controlled entities.

   b) The Entity's net earnings are credited to its own account or to the accounts of one or more Governmental Entities, with no portion of its income inuring to the benefit of any private person.

   c) The Entity's assets vest in one or more Governmental Entities upon dissolution.

3 Income does not inure to the benefit of private persons if such persons are the intended beneficiaries of a governmental programme and the programme activities are performed for the general public with respect to the common welfare or relate to the administration of some phase of government. Notwithstanding the foregoing, however, income is considered to inure to the benefit of private persons if the income is derived from the use of a Governmental Entity to conduct a commercial business, such as a commercial banking business, that provides financial services to private persons.

IGA Partner jurisdiction means a jurisdiction that has in effect an agreement with the United States to facilitate the implementation of FATCA. The IRS shall publish a list identifying all Partner Jurisdictions.

Institution, board or body contemplated in section 10(1)(cA) (e.g. water board) means an institution, board or body contemplated in section 10 (1)(cA) of the (South African) Income Tax Act 58 of 1962.

International Organisation: Any international organisation or wholly owned agency or instrumentality thereof. This category includes any intergovernmental organisation (including a supranational organisation) (1) that is comprised primarily of governments; (2) that has in effect a headquarters agreement or substantially similar agreement with the jurisdiction; and (3) the income of which does not inure to the benefit of private persons.

Investment Entity means any Entity:

a) that primarily conducts as a business one or more of the following activities or operations for or on behalf of a client:

   1 trading in money market instruments (cheques, bills, certificates of deposit, derivatives, etc.); foreign exchange; exchange, interest rate and index instruments; transferable securities; or commodity futures trading;

   2 individual and collective portfolio management; or

   3 otherwise investing, administering or managing funds or money on behalf of other persons; or

b) the gross income of which is primarily attributable to investing, reinvesting, or trading in Financial Assets, if the Entity is managed by another Entity that is a Depository Institution, a Custodial Institution, a Specified Insurance Company, or an Investment Entity.

An Entity is treated as primarily conducting as a business one or more of the activities described in subparagraph (a) above, or an Entity's gross income is primarily attributable to investing, reinvesting, or trading in Financial Assets for purposes of subparagraph (b), if the Entity's gross income attributable to the relevant activities equals or exceeds 50% of the Entity's gross income during the shorter of: (i) the three-year period that ends on the last day of February of the prior tax year; or (ii) the period during which the Entity has been in existence.

Listed corporation means a corporation the stock of which is regularly traded on one or more established securities markets.

A Model 1 IGA means an agreement between the States or the Treasury Department and a foreign government or one or more agencies to implement FATCA through reporting by FFIs to such foreign government or agency, followed by automatic exchange of the reported information with the IRS. An FFI in a Model 1 IGA jurisdiction that performs account reporting to the jurisdiction's government is referred to as a **Reporting Model 1 FFI.**

A Model 2 IGA means an agreement or arrangement between the United States or the Treasury Department and a foreign government or one or more agencies to implement FATCA through reporting by FFIs directly to the IRS in accordance with the requirements of an FFI agreement, supplemented by the exchange of information between such foreign government or agency and the IRS. An FFI in a Model 2 IGA jurisdiction that has entered into an FFI agreement with respect to a branch is a participating FFI but may be referred to as a **Reporting Model 2 FFI.**

Narrow Participation Retirement Fund: A fund established to provide retirement, disability, or death benefits to beneficiaries that are current or former employees (or persons designated by such employees) of one or more employers in consideration for services rendered, provided that:

1 The fund has fewer than 50 participants.

2 The fund is sponsored by one or more employers that are not Investment entities or Passive NFFEs.

3 The employee and employer contributions to the fund (other than certain transfers from retirement and pension accounts) are limited by reference to earned income and compensation of the employee, respectively.

4 Participants that are not residents of the jurisdiction in which the fund is established are not entitled to more than 20% of the fund's assets.

5 The fund is subject to government regulation and provides annual information reporting about its beneficiaries to the relevant tax authorities.

Non-financial Entity (NFE) means any Entity that is not a Financial Institution consisting of Active NFEs and Passive NFEs. The term NFE is equivalent to a NFFE, the terms used for US FATCA purposes.

Non-reportable persons include Listed Corporations, Related Entities to Listed Corporation, Governmental Entity, International Organisations, Central Banks and Certain FI's.

Other means any one of the following:

- a holder of shares in a registered micro business, as defined in the Sixth Schedule [to the (South African) income Tax Act 58 of 1962], paying that dividend, to the extent that the aggregate amount of dividends paid by that registered micro business to all holders of shares in that registered micro business during the year of assessment in which that dividend is paid does not exceed the amount of R200 000;
- a small business funding entity as contemplated in section 10(1) [cQ of the (South African) Income Tax Act 58 of 1962];
- a person that is not a resident (of South Africa) and the dividend is a dividend contemplated in paragraph (b) of the definition of "**dividend**" in section 64D of the (South African) Income Tax Act 58 of 1962;
- a portfolio of a collective investment scheme in securities;
- any person to the extent that the dividend constitutes income of that person;
- any person to the extent that the dividend was subject to the secondary tax on companies;
- any fidelity or indemnity fund contemplated in section 10(1)(d)(iii) of the (South African) Income Tax Act 58 of 1962; or
- a natural person or deceased estate, or insolvent estate of that person in respect of a dividend paid in respect of a tax-free investment as contemplated in section 12T (1) of the (South African) Income Tax Act 58 of 1962.

Passive NFFE means any NFFE other than an Active NFFE.

Participating Foreign Financial Institution: A participating FFI is an FFI that has agreed to comply with the terms of an FFI agreement with respect to all branches of the FFI, other than a branch that is a reporting Model 1 FFI or a US branch. The term participating FFI also includes a reporting Model 2 FFI and a QI branch of a US financial institution, unless such branch is a reporting Model 1 FFI.

Pension Fund of an Exempt Beneficial Owner: A fund established by an exempt Beneficial Owner to provide retirement, disability, or death benefits to beneficiaries or participants that are current or former employees of the exempt Beneficial Owner (or persons designated by such employees), or that are not current or former employees, if the benefits provided to such beneficiaries or participants are in consideration of personal services performed for the exempt Beneficial Owner.

Person contemplated in section 10(1)(t) (e.g. CSIR, SAIDC, DBSA) means a person contemplated in section 10 (1)(t) of the (South African) Income Tax Act 58 of 1962.

Public Benefit Organisation approved by SARS (PBO) means a Public Benefit Organisation approved by the Commissioner in terms of section 30 (3) of the (South African) Income Tax Act 58 of 1962.

Qualified Credit Card Issuer means a Financial Institution satisfying the following requirements:

a) The Financial Institution is a Financial Institution solely because it is an issuer of credit cards that accepts deposits only when a client makes a payment in excess of a balance due with respect to the card and the overpayment is not immediately returned to the client.

b) Beginning on or before 1 March 2016, the Financial Institution implements policies and procedures either to prevent a client from making an overpayment in excess of $50 000, or to ensure that any client overpayment in excess of $50 000 is refunded to the client within 60 (sixty) days.

Recipient: Absa Group Limited.

Related Entity to Listed Corporation means the controlling and controlled entity including two Entities under common control. For this purpose, control includes direct or indirect ownership of more than 50% of the vote or value in an Entity.

RSA Government (National, provincial or municipal) means the government of the Republic (of South Africa) in the national, provincial or local sphere.

Specified Insurance Company means any Entity that is an insurance company (or the holding company of an insurance company) that issues, or is obligated to make payments with respect to, a Cash Value Insurance Contract or an Annuity Contract.

South African tax resident means a company which is a resident of South Africa.

Tax Regulations refers to regulations created to enable automatic exchange of information and include Foreign Account Tax Compliance Act, various agreements to improve International Tax Compliance entered into between South Africa and the Organisation for Economic Cooperation and Development Common Reporting Standard for Automatic Exchange of Financial Account Information, as implemented in the relevant jurisdictions. For purposes of the definition of "**international tax standard**" in section 1 and under section 257 of the Tax Administration Act, 2011, the changes to the Organisation for Economic Cooperation and Development ("**OECD**") Standard for Automatic Exchange of Financial Account Information in Tax Matters (hereinafter "**the Standard**"), which encompasses the "**Common Reporting Standard**", "**and any other international standard for the exchange of tax-related information between countries specified by the Minister**".

Trust contemplated in section 37A (e.g. mining rehabilitation trust) means a trust contemplated in section 37A of the (South African) Income Tax Act 58 of 1962.

US tax resident or US Person: The definitions of these terms (FATCA) may be found in paragraphs §1.1471-1, §1.1471-5, §1.1471-6, §1.1472-1 and §1.1473-1 of the United States Internal Revenue Code. If the country in which your organisation is resident has signed an Intergovernmental Agreement (IGA) with the United States or with other relevant countries, please refer to the equivalent definitions in the relevant IGA and/or the enabling legislation applicable to that country's IGA.